# GOVERNMENT OF MADHYA PRADESH

## Urban Administration and Development Department

# Appendix 2.10
# Tender Document

For Percentage Rate only in Works Departments and other Departments similar to Works Departments
(Effective from 02/08/2021)

### Office of the Nagar Parishad Chhapiheda (M.P.)

| | | |
|---|---|---|
| NIT Number and Date | : | 1314/30.09.2026 |
| Agreement Number and Date | | |
| Name of the Work | : | **CONSTRUCTION OF COMMUNITY BUILDING NEAR DURGAMATA TEMPLE IN WARD NO.09** |
| Name of the Contractor | : | |
| Probable Amount of Contract | | |
| (Rs. In Figure) | : | **431005** |
| (Rs. In Words) | : | INR Four Lakh Thirty One Thousand &Five Only |
| Contract Amount | | |
| (Rs. In Figure) | : | |
| (Rs. In Words) | : | |
| | | |
| Stipulated Period of Completion: | | 03 Month (Including Rainy Season)Month |

# Appendix 2.10
# Tender Document

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# SECTION 1

## Notice Inviting e-Tenders

### Government of Madhya Pradesh
### Urban Administration and Development Department

**1 stSt Call**

N.I.T. No 1314/e-tendering Chhapiheda Dated 30.09.2026

Online percentage rate bids for the following works are invited from registered contractors of MPPWD of repute fulfilling registration criteria:

| S. No./Pkg/Code | Work | District(s) | Probable Amount (Rs. in lakh) | Completion Period (months) |
|---|---|---|---|---|
| 01 | **CONSTRUCTION OF COMMUNITY BUILDING NEAR DURGAMATA TEMPLE IN WARD NO. 09.** | Rajgarh | 431005 | 03 Month (Including Rainy Season) Months |

1. Interested bidders can view the NIT on website http://mptender.gov.in

   The Bid Document can be download and Bid Submission from 03.10.2026(date) 10:30:00 AM (time) to 19.10.2026(date) 17:30 PM (time)

2. **Amendments to NIT, if any, would be published on website only, and not in newspaper.**

**Signature and Designation**

# Notice Inviting Tender
## Government of Madhya Pradesh
# Urban Administration and Development Department
## Office of the Nagar Parishad Chhapiheda (M.P.)

N.I.T. No 1314/e-tendering Chhapiheda Dated 30.09.2026

Online percentage rate bids for the following works are invited from registered contractors of MPPWD of repute fulfilling registration criteria:

| S. No. /Pkg/ Code | Name of Work | District(s) | Probable Amount of Contract (Rs. inlakh) | Earnest Money Deposit (EMD) (In Rupees) | Cost of Bid Document (In Rupees) | Category of Contractor | Period of Completion (in Months) |
|---|---|---|---|---|---|---|---|
| 1 | **CONSTRUCTION OF COMMUNITY BUILDING NEAR DURGAMATA TEMPLE IN WARD NO. 09.** | **Rajgarh** | 431005 | **Rs.4310.00** | **Rs. 2000/-** | Registered Contractors of MPPWD | 03 Month (Including Rainy Season) Month |

**1.** All details relating to the Bid Document(s) can be viewed and downloaded free of cost on the website.

**2.** Bid Document can be purchased after making online payment of portal fees through Credit/Debit/Cash Card/internet banking.

**3.** At the time of submission of the Bid the eligible bidder shall be required to:
- i) Submit a check list; and
- ii) Submit an affidavit.
- iii) PAN
- iv) GSTIN
- v) Vendor Registration

Details can be seen in the Bid Data Sheet.

**4. ELIGIBILITY FOR BIDDERS:**

(a) At the time of submission of the Bid the bidder should have valid registration with the Government of Madhya Pradesh, PWD in appropriate class However, such bidders who are not registered with the Government of Madhya Pradesh and are eligible for registration can also submit their bids after having applied for registration with appropriate authority.

(b) The bidder would be required to have valid registration at the time of signing of the Contract.

(c) Failure to sign the contract by the selected bidder, for whatsoever reason, shall result in forfeiture of the earnest money deposit.

~~**5. Pre-qualification –** Prequalification conditions, wherever applicable, are given in the Bid Data Sheet.~~

~~**6. Special Eligibility -** Special Eligibility Conditions, if any, are given in the Bid Data Sheet.~~

**7.** The Bid Document can be download and bid submission online from 10:30:00 AM (time)03.10.2026(date) to 17:30 PM(time) 19.10.2026(date). Other critical dates may be seen in bid data sheet

**8. Amendments to NIT, if any, would be published on website only, and not in newspaper.**

**(Signature and Designation)**

# SECTION 2

# INSTRUCTIONS TO BIDDERS (ITB)

## A. GENERAL

**1. SCOPE OF BID**

The detailed description of work, hereinafter referred as 'work', is given in the Bid Data Sheet.

**2. General Quality of Work:**

The work shall have to be executed in accordance with the technical specifications specified in the Bid Data sheet/ Contract Data, and shall have to meet high standards of workmanship, safety and security of workmen and works.

**3. PROCEDURE FOR PARTICIPATION IN E-TENDERING**

The procedure for participation in e-tendering is given in the Bid Data Sheet.

**4. ONE BID PER BIDDER**

The bidder can be an individual entity or a joint venture (if permitted as per Bid Data Sheet). In case the J.V. is permitted, the requirement of joint venture shall be as per the Bid Data Sheet.

No bidder shall be entitled to submit more than one bid whether jointly or severally. If he does so, all bids wherein the bidder has participated shall stand disqualified.

**5. Cost of Bidding**

The bidder shall bear all costs associated with the preparation and submission of his bid, and no claim whatsoever for the same shall lie on the Government.

**6. Site Visit and examination of works**

The bidder is advised to visit and inspect the Site of Works and its surroundings and obtain for itself on its own responsibility all information that may be necessary for preparing the bid and entering into a contract for construction of the work. All costs in this respect shall have to be borne by the bidder.

## B. Bid Documents

**7. CONTENT OF BID DOCUMENTS**

The Bid Document comprises of the following documents:

1. NIT with all amendments.

2. Instructions to Bidders, Bid Data Sheet with all Annexures
3. Conditions of Contract:
    i. Part I General Conditions of Contract and the Contract Data with all Annexures; and
    ii. Part II Special Conditions of Contract.
4. Specifications
5. Drawings
6. Priced Bill of Quantities
7. Technical and Financial Bid
8. Letter of Acceptance
9. Agreement, and
10. Any other document(s), as specified.

**8.** The bidder is expected to examine carefully all instructions, conditions of contract, the **contract data**, forms, terms and specifications, bill of quantities, forms and drawings in the Bid Document. Bidder shall be solely responsible for his failure to do so.

**9. Pre-Bid Meeting (where applicable)**

Wherever the Bid Data Sheet provides for pre-bid meeting:

Details of venue, date and time would be mentioned in the Bid Data Sheet. Any change in the schedule of pre-bid meeting would be communicated on the website only, and intimation to bidders would not be given separately.

Any prospective bidder may raise his queries and/or seek clarifications in writing before or during the pre-bid meeting. The purpose of such meeting is to clarify issues and answer questions on any matter that may be raised at that stage. The Employer may, at his option, give such clarifications as are felt necessary.

Minutes of the pre-bid meeting including the gist of the questions raised and the responses given together with any response prepared after the meeting will be hosted on the website.

Pursuant to the pre-bid meeting if the Employer deems it necessary to amend the Bid Document, it shall be done by issuing amendment to the online NIT.

**10. Amendment of Bid Documents**

Before the deadline for submission of bids, the Employer may amend or modify the Bid Documents by publication of the same on the website.

All amendments shall form part of the Bid Document.

The Employer may, at its discretion, extend the last date for submission of bids by publication of the same on the website.

## C. Preparation of Bid

**11.** The bidders have to prepare their bids online, encrypt their Bid Data in the Bid Forms and submit Bid Seals (Hashes) of all the envelopes and documents related to the Bid required to be uploaded as per the time schedule mentioned in the key dates of the Notice Inviting e-Tenders after signing of the same by the Digital Signature of their authorized representative.

**12. DOCUMENTS COMPRISING THE BID**

The bid submitted online by the bidder shall be in the following parts:

**Part 1** – This shall be known as Online **Envelope A** and would apply for all bids. Online **Envelop A** shall contain the following as per details given in the Bid Data Sheet:

i) Registration number or proof of application for registration and organizational details in format given in the Bid Data Sheet.
ii) An affidavit duly notarized.

**Part 2** – This shall be known as Online **Envelope C** and would apply to all bids. **Envelop C** shall contain financial offer in the prescribed format enclosed with the Bid Data Sheet.

**13. Language**

The bid as well as all correspondence and documents relating to the bid exchanged by the Bidder and the Employer shall be in English or Hindi. Supporting documents and printed literature that are part of the Bid may be in another language provided they are accompanied by an accurate translation of the relevant passages in English. In such case, for the purposes of interpretation of the bid, such translation shall govern.

## 14. TECHNICAL PROPOSAL

Only, in case of bids with pre-qualification conditions defined in the Bid Data Sheet, the Technical Proposal shall comprise of formats and requirements given in the Bid Data Sheet.

All the documents/ information enclosed with the Technical Proposal should be self-attested and certified by the bidder. The Bidder shall be liable for forfeiture of his earnest money deposit, if any document / information are found false/ fake/ untrue before acceptance of bid. If it is found after acceptance of the bid, the bid sanctioning authority may at his discretion forfeit his performance security/Pratibhuti Ki Rashi guarantee, security deposit, enlistment **deposit** and take any other suitable action.

## 15. FINANCIAL BID

i. The bidder shall have to quote rates in format referred in Bid Data Sheet, in overall percentage, and not item wise. If the bid is in absolute amount, overall percentage would be arrived at in relation to the probable amount of contract given in NIT. The overall percentage rate would apply for all items ofwork.

ii. Percentage shall be quoted in figures as well as in words. If any difference in figures and words is found, lower of the two shall be taken as valid and correct.

iii. "The bidder shall have to quote rates inclusive of all duties, royalties, levies and taxes except Goods and Services Tax (GST). The amount of applicable GST will be paid separately to the Contractor with each bill at the time of payment. The employer shall not be liable for any duties, taxes (except GST) royalties and levies".

iv. The material along with the units and rates, which shall be issued, if any, by the department to the contractor, is mentioned in the Bid Data Sheet.

## 16. PERIOD OF VALIDITY OF BIDS

The bids shall remain valid for a period specified in the Bid Data Sheet after the date of "close for biding" as prescribed by the Employer. The validity of the bid can be extended by mutual consent in writing.

## 17. EARNEST MONEY DEPOSIT (EMD)

The Bidder shall furnish, as part of the Bid, Earnest Money Deposit (EMD), in the amount specified in the Bid Data Sheet.

The EMD shall be in online form (Debit/Credit Card/ Net Banking/ System generated Challan of a scheduled commercial bank, issued in favour of the name given in the Bid Data Sheet. The Fixed Deposit Receipt shall be valid for six months or more after the last date of receipt of bids. However, other form(s) of EMD may be allowed by the Employer by mentioning it in the Bid Data Sheet.

Bid not accompanied by EMD shall be liable for rejection as non-responsive.

EMD of bidders whose bids are not accepted will be returned within ten working days of the decision on the bid.

EMD of the successful Bidder will be discharged when the Bidder has signed the Agreement after furnishing the required Performance security/Pratibhuti Ki Rashi.

Failure to sign the contract by the selected bidder, within the specified period, for whatsoever reason, shall result in forfeiture of the earnest money deposit.

## D. Submission of Bid

**18.** The bidder is required to submit online bid duly signed digitally, and Envelop 'A' in physical form also at the place prescribed in the Bid Data Sheet after the date of electronic opening of Technical Bid.

## E. Opening and Evaluation of Bid

**19 PROCEDURE**

Envelope 'A' shall be opened first online at the time and date notified and its contents shall be checked. In cases where Envelop 'A' does not contain all requisite documents, such bid shall be treated as non-responsive, and Envelop B and/or C of such bid shall not be opened.

~~Wherever Envelop 'B' (Technical Bid) is required to be submitted, the same shall be opened online at the time and date notified. The bidder shall have freedom to witness opening of the Envelop 'B'. Envelop 'C' (Financial Bid) of bidders who are not qualified in Technical Bid (Envelop 'B') shall not be opened.~~

Envelope 'C' (Financial Bid) shall be opened online at the time and date notified. The bidder shall have freedom to witness opening of the Envelop 'C'.

After opening Envelop 'C' all responsive bids shall be compared to determine the lowest evaluated bid.

The Employer reserves the right to accept or reject any bid, and to annul the bidding process and reject all the bids at any time prior to contract award, without incurring any liability. In all such cases reasons shall be recorded.

The Employer reserves the right of accepting the bid for the whole work or for a distinct part of it.

Contents of envelope "A" and "B" are required to be submitted in physical form after the date of electronic opening of Technical bid at the place and date specifed in the Bid Data Sheet. If the contents of documents submiited online in Enelope "A' differ with contens of physical form submitted by the contractor after electronic opening of technical bid or the contractor fails to submit Envelope "A" in physical form as specified in the Bid Data Sheet, the bid shall be liable for rejection as non-responsive.

During Bid evalution, the employer or its representative may, at its discretion, ask the bidder for a clarification of its Bid. The request for clarification and the response shall be in writing, and no change in the price or substance of the Bid shall be sought, offered or permitted.

**20. Confidentiality**

Information relating to examination, evaluation, comparison and recommendation of contract award shall not be disclosed to bidders or any other person not officially concerned with such process until final decision on the bid.

Any attempt by a bidder to influence the Employer in the evaluation of the bids or contract award decisions may result in the rejection of his bid.

## F. Award of Contract

**21. Award of Contract**

The Employer shall notify the successful bidder by issuing a 'Letter of Acceptance' (LOA) that his bid has been accepted.

**22. Performance security/Pratibhuti Ki Rashi**

Prior to signing of the Contract the bidder to whom LOA has been issued shall have to furnish performance security/Pratibhuti Ki Rashiof the amount in the form and for the duration, etc. as specified in the Bid Data Sheet.

Additional performance security/Pratibhuti Ki Rashi, if applicable, is mentioned in the Bid Data Sheet and shall be in the form and for the duration, etc. similar to Performance security/ Pratibhuti Ki Rashi.

**23. Signing of Contract Agreement**

The successful bidder shall have to furnish Performance security/Pratibhuti Ki Rashiand Additional Performance security/ Pratibhuti Ki Rashi, if any, and sign the contract agreement within 15 days of issue of LOA.

The signing of contract agreement shall be reckoned as intimation to commencement of work. No separate work order shall be issued by the Employer to the contractor for commencement of work.

In the event of failure of the successful bidder to submit Performance security/Pratibhuti Ki Rashiand Additional Performance security/Pratibhuti Ki Rashi, if any or sign the Contract Agreement, his EMD shall stand forfeited without prejudice to the right of the employer for taking any other action against the bidder.

## 24. CORRUPT PRACTICES

The Employer requires that bidders observe the highest standard of ethics during the procurement and execution of contracts. In pursuance of this policy, the Employer:

i. may reject the bid for award if it determines that the bidder recommended for award has, directly or through an agent, engaged in corrupt, fraudulent, collusive, or coercive practices in competing for the Contract; and

ii. may debar the bidder declaring ineligible, either indefinitely or for a stated period of time, to participate in bids, if it at any time determines that the bidder has, directly or through an agent, engaged in corrupt, fraudulent, collusive, or coercive practices in competing for, or in executing, acontract.

For the purposes of this provision, the terms set forth above are defined as follows:

a. "corrupt practice" means the offering, giving, receiving, or soliciting, directly or indirectly, anything of value to influence improperly the actions of another party;

b. "fraudulent practice" means any act or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation;

c. "coercive practice" means impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;

d. "collusive practice" means an arrangement between two or more parties designed to achieve an improper purpose, including influencing improperly the actions of another party.

**[End of ITB]**

# Bid Data Sheet

**GENERAL**

| SR. No. | PARTICULARS | DATA |
|---|---|---|
| 1 | Office inviting tender | Nagar ParishadChhapiheda |
| 2 | NIT No | 1314 |
| 3 | Date of NIT | 30.09.2026 |
| 4 | Bid document download available from date & time | 03.10.2026,10:30:00 PM. To 19.10.2026, 17:30 PM |
| 5 | Website link | http:// www.mptender.gov.in |

**SECTION 1 - NIT**

| NIT CLAUSE | PARTICULARS | DATA |
|---|---|---|
| 2 | Portal fees | As Notified in E- Tendering Website. |
| 3 | Cost of bid document | **Rs. 2000.00** |
| | Cost of bid document Payable at | Nagar Parishad CHHAPIHEDA<br>**Using Net Banking/ Credit-Debit Card** |
| | Cost of bid document In favor of | CMO, Nagar Parishad Chhahipeda |
| 4 | Affidavit format | Annexure B |
| 5 | Pre-qualifications required | **"NO"**<br>YES<br>required as below<br>(a) In case of roads and bridge works costing more than Rs. 5 Cr.<br>and<br>(b) In case of building works costing more than fifty lacs. |
| | If Yes, details | ~~Annexure C~~<br>(Evaluation by Superintending Engineer who will intimate reasons to disqualified bidders) |
| | Special Eligibility (if yes prior permission of E-in-C required) | ~~YES~~ NO |
| | If Yes, details | Annexure D |
| 7 | Key dates | Annexure A |

# Bid Data Sheet

**`SECTION 2 - ITB**

| ITB CLAUSE | PARTICULARS | DATA |
|---|---|---|
| 1 | Name of 'work' | **CONSTRUCTION OF COMMUNITY BUILDING NEAR DURGAMATA TEMPLE IN WARD NO. 09.** |
| 2 | Specifications | As per Annexure – E<br>in addition to as below –<br>(a) In case of Roads and Bridge works :<br>SPECIFICATION FOR ROAD AND BRIDGE WORK (fifth Revision) By MORTH.<br>(b) In case of Building Works SPECIFICATION FOR BUILDING WORKS BY CPWD<br>(c) UADD ISSR inforce from 02.08.2021 |
| 3 | Procedure for participation in e-tendering | Annexure – F |
| 4 | Whether Joint Venture is allowed | |
| | If yes, requirement for Joint Venture | Annexure – G |
| 9 | If Prebid Meeting to be held then date and Place of Meeting | Date ..... Time .....<br>Place ..... |

# Bid Data Sheet

| CLAUSE REFERENCE | PARTICULARS | DATA |
|---|---|---|
| 12 | **Envelope-A** containing :<br>i. Registration number or proof of application for registration and organizational details as per Annexure H<br>ii. An affidavit duly notarized as<br>iii. tender document pur. receipt per Annexure - B<br>should reach in physical form in the office on or before date of physical submission | Office of the Nagar Parishad Chhapiheda / Divional Office, Bhopal. |
| | **Envelope-C** Financial Bid | Annexure - J |
| 15 | Materials to be issued by the department | Annexure - K |
| 16 | Period of Validity of Bid | 180 Days |
| 17 | Earnest Money Deposit | **Rs. 14821**/- |
| | Forms of Earnest Money Deposit | **Online payment through Debit/Credit Card/ Net banking or system generated challan** |
| | Account Detail for Online EMD Payment | **i. Name of Account Holder<br>ii. Account No. 53046410126<br>iii. Bank Name State Bank of India Chhapiheda iv. IFS Code SBIN0010807** |
| | EMD valid for a period of | Six Months or More |
| | FDR must be drawn in favour of | Cmo nagar Parishad Chhapiheda A/c |
| 18 | Letter of Acceptance (LoA) | Annexure L |
| 19 | Amount of Performance security/Pratibhuti Ki Rashi | 3 % of contract amount for Road and bridge works.<br>3% of the contract amount for building works<br>7% Performance Security deduction from each running bill |
| | Additional Performance security/ Pratibhuti Ki Rashi, if any | Equal to an amount arrived at. by multiplying the contract amount with difference of percentage between percent rates (below/minus) of successful bid and 10% (Ten percent) (Below/minus) considering bid rates less than 10 percent below PAC to be unworkable and shall required additional performance security/Pratibhuti Ki Rashi(guarantee) |
| | Performance security/Pratibhuti Ki Rashiin the format | Annexure M |
| | Performance security/Pratibhuti Ki Rashi in favour of | CMO, Nagar Parishad Chhapiheda Valid Contract period plus 6 months |
| | Performance security/Pratibhuti Ki Rashi valid upto | |
| 19.70 | Date and place for submission of physical form of contents of envelope A i) and ii) and Envelope B as specified in Clause 12 of ITB | **1. Date..... (two working days after date of opening of technical bid.<br>2. Place..... (ULB Address)<br>or<br>(address of office of Divisional Executive Engineer of Urban Administration and Development Division .....** |

**Annexure – A**

(*See clause 1, 7 of Section 1 -NIT* )

## CRITICAL DATES

| | | | |
|---|---|---|---|
| **Published Date** | **03.10.2026, 10:30:00 AM** | **Bid Opening Date** | **21.10.2026, 11:00 AM** |
| **Document Download / Sale Start Date** | **03.10.2026, 10:30:00 AM** | **Document Download / Sale End Date** | **19.10.2026, 17:30 PM** |
| **Clarification Start Date** | | **Clarification End Date** | |
| **Bid Submission Start Date** | **03.10.2026, 10:30:00 AM** | **Bid Submission End Date** | **19.10.2026, 17:30 PM** |

*term deposit receipt of earnest money deposit, demand draft for the cost of bid document and affidavit shall be submitted by the bidder so as to reach the office as prescribed in Bid Data Sheet, at least one calendar day before specified start time and date in key dates for opening of technical proposal as per Key dates in Bid Data Sheet.*

**Annexure –B**
**(*See clause 3 of Section 1 -NIT*)**

# (On Rs. 100/- Non-Judicial Stamp Paper )

I/we_____who is/are _____(status in the firm/ company) and competent forsubmission of the affidavit on behalf of M/S _____ (contractor) do solemnly affirm an oath and state that:

I/we am/are fully satisfied for the correctness of the certificates/records submitted in support of the following information in bid documents which are being submitted in response to notice invitinge-tenderNo._____for _____(name of work)dated _____ issued by the _____(name of thedepartment).

I/we am/ are fully responsible for the correctness of following self-certified information/ documents and certificates:

1. That the self-certified information given in the bid document is fully true and authentic.
2. That:
   a. Termdepositreceiptdepositedasearnestmoney,demanddraftforcostofbid documentandotherrelevantdocumentsprovidedbytheBankareauthentic.
   b. Information regarding financial qualification and annual turnover iscorrect.
   c. Information regarding various technical qualifications iscorrect.
3. No close relative of the undersigned and our firm/company is working in the department.

**OR**

Following close relatives are working in the department:

Name_____Post_____PresentPosting_____

**Signature with Seal of the Deponent (bidder)**

I/We,_____above deponent do hereby certify that the facts mentionedinaboveparas1to4arecorrect tothe bestofmyknowledgeandbelief.

Verifiedtoday_____(dated)at_____(place).

**Signature with Seal of the Deponent (bidder)**

Note: ***Affidiavt Duly Notarized in Origingal shall be reached in physically on or before the date of physical submission.***

**Annexure –C**

(*See clause 5 of Section 1 -NIT*)

## PRE-QUALIFICATIONS CRITERIA

**The bidder should have:**

**A. Financial**

i. experience of having successfullyexecuted:

a) three similar works, each costing not less than the amount equal to 20% of the probable amount of contract during the last 3 financial years;or

b) two similar works, each costing not less than the amount equal to 30% of the probable amount of contract during the last 3 financial years;or

c) one similar work of aggregate cost not less than the amount equal to 50% of the probable amount of contract in a single financial year during the last 3 financialyears;

NIL

ii. Average annual construction turnover on the construction works not less than 50% of the probable amount of contract during the last 3 financialyears.

iii. Executed similar items of work in any one financial year during the last 3 financial years, which should not be less than the minimum, physical requirement, if any, fixed for thework.

iv. **Bid Capacity –** Bidder shall be allotted work up to his available Bid Capacity, which shall be worked out as given in format I-2 of AnnexureI.

**B. Physical**

Physical qualifications for the work shall be as below

| **Sno** | **Particulars** | **Quantity** | **Period** |
|---|---|---|---|
| 1 | Physical qualification required | No | |
| 2 | Earthwork | | |
| 3 | Concrete work | | |

**(The Employer shall specify all physical qualifications required).**

**Note: Above criteria are indicative, subject to suitable stipulations by thedepartments and specific Bid.**

**~~Annexure – D~~**

(*See clause 6 of Section 1 -NIT*)

## ~~SPECIAL ELIGIBILITY CRITERIA~~

**~~The bidder should have experience of:~~**

A. ~~Erection ofSteelGates~~ - ~~--------~~

B. ~~Constructionoftunnel~~ - ~~--------~~

NIL

***~~Note: Above criteria are indicative, subject to suitable stipulations by thedepartments and specificbid.~~***

**ANNEXURE -E**

(*See clause 2 of Section 2–ITB& Clause 10 ofGCC*)

# Specifications

1. **CPWD DepartmentSpecifications,**

2. **MP UADD ISSRSpecifications**

**(The soft copy of above specifications is available at departmental website www.mpurban.gov.in)**

*The provisions of general / special conditions of contract, those specified elsewhere in the bid document, as well as execution drawings and notes, or other specifications issued in writing by the Employer shall form part of the technical specifications of this work.*

**Annexure-F**

*(See clause 3 of section2-ITB)*

## Procedure for Participation in e-Tendering

**1. Registration of Bidders on e-TenderingSystem:**

**All the PWD registered bidders are already registered on the new e-procurement portal https://www.mptender.gov.in. The user id will be the contractor ID provided to them from MP Online. The password for the new portalhasbeensenttothebiddersregisteredemailID.formoredetailsmay Helpdesk phone numbers are available onwebsite.**

**2. DigitalCertificate:**

**ThebidssubmittedonlineshouldbesignedelectronicallywithaClassIII Digital Certificate to establish the identity of the bidder submitting the bid online. The bidders may obtain Class III Digital Certificate issued byan approved Certifying Authority authorized by the Controller of Certifying Authorities,GovernmentofIndia.AClassIIIDigitalCertificateisissuedupon receiptofmandatoryidentityproofsalongwithanapplication.Onlyuponthe receipt of the required documents, a Digital Certificate can be issued. For details please visitcca.gov.in.**

**Note:**

*i. It may take upto 7 working days for issuance of Class III Digital Certificate; hence the bidders are advised to obtain the certificate at the earliest. Those bidders who already have valid Class III Digital Certificate need not obtain another Digital Certificate for the same. The bidders may obtain more information and the Application From required to be submitted for the issuance of Digital Certificatefrom* ***CCA.GOV.IN***

*ii. Bids can be submitted till bid submission end date. Bidder will require digital signature while bidsubmission.*

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The digital certificate issued to the Authorized User of a Partnership firm / PrivateLimitedCompany/PublicLimitedCompanyandusedforonline bidingwillbeconsideredasequivalenttoano-objectioncertificate/powerof attorney to thatuser.

IncaseofPartnershipfirm,majorityofthepartnershavetoauthorizea specific individual through Authority Letter signed by majority of the partners of thefirm.

incaseofPrivateLimitedCompany,PublicLimitedCompany,theManaging DirectorhastoauthorizeaspecificindividualthroughAuthorityLetter.Unless thecertificateisrevoked,itwillbeassumedtorepresentadequateauthorityof thespecificindividualtobidonbehalfoftheorganizationforonlinebidsasper informationTechnologyAct12415.ThisAuthorizedUserwillberequiredto obtain a Digital Certificate. The Digital Signature executed through the use of DigitalCertificateofthisAuthorizedUserwillbebindingonthefirm.Itshallbe theresponsibilityofManagement/Partnersoftheconcernedfirmtoinformthe CertifyingAuthority,iftheAuthorizedUserchanges,andapplyforafreshDigital Certificate for the new AuthorizedUser.

3. **Set Up of Bidder's ComputerSystem:**

Inorderforabiddertooperateonthee-tenderingSystem,theComputer SystemofthebidderisrequiredtobesetupforOperatingSystem,Internet Connectivity, Utilities, Fonts, etc. The details are available at https://www.mptender.gov.in

4. **KeyDates:**

The bidders are strictly advised to follow the time schedule (Key Dates) of the bidontheirsidefortasksandresponsibilitiestoparticipateinthebid,asallthe stagesofeachbidarelockedbeforethestarttimeanddateandaftertheend timeanddatefortherelevantstageofthebidassetbytheDepartment.

**5. Preparation and Submission ofBids**

**The bidders have to prepare their bids online, encrypt their bid Data in the BidformsandsubmitBidofalltheenvelopesanddocumentsrelatedtothe Bid required to be uploaded as per the time schedule mentioned in thekey datesoftheNoticeinvitinge-TendersaftersigningofthesamebytheDigital Signature of their authorizedrepresentative.**

**5. Purchase of Bid Document**

**ForpurchasingofthebiddocumentbiddershavetopayServiceChargeonline ONLYwhichisRs.[asperBidDateSheet].Costofbiddocumentisseparately mentioned in the Detailed NIT. The Bid Document shall be available for purchasetoconcernedeligiblebiddersimmediatelyafteronlinereleaseofthe bidsanduptoscheduledtimeanddateassetinthekeydates.**

**Thepaymentforthecostofbiddocumentshallbemadeonlinethrough Debit/Credit card , Net banking or NeFTChallan through the payment gateway provided on theportal.**

**7 Withdrawal, Substitution and Modification OfBids**

**Bidder can withdraw and modify the bid till Bid submission end date.**

## ANNEXURE -G

## {See Clause 4 of Section2-ITB}

**JOINT VENTURE (J.V.)**

If J.V. is allowed following conditions and requirements must be fulfilled -

1. Number of partners in a Join Venture shall not exceed 3 (three). The partners shall comply with the following requirements.
   (a) One of the partner shall be nominated as being Lead Partner, and this authorization shall be evidenced by submitting a power of attorney signed by legally authorized signatories of all thepartners;
   (b) The bid and, in case of successful bid, the agreement, shall be signed so as to be legally binding on all partners,
   (c) The partner sin charge shall be authorized to incur liabilities and receive instruction for and on behalf of any and all partners of the Joint Venture and the entire execution of the contract, including payment shall be done exclusively with the partner incharge;
   (d) All the partners of the Joint Venture shall be liable jointly and severally for the execution of the contract in accordance with the contract terms, and a statement to this effect shall be included in the authorization mentionedunder[c]above,aswellasin thebid and in theagreement (incaseofsuccessfulbid),
   (e) The Joint Venture agreement should indicate precisely the role and responsibilities of the all the members of JV in respect of planning, design, construction equipment, key personnel, work execution and financing of the project including operation and maintenance of the works All members of JV should have active participation in execution during the currency of the contract. This should not be varied / modified subsequently without prior approval of theemployer.
   (f) The Join Venture agreement should be registered, so as to be legally valid and binding on allpartners.
   (g) A copy of the Joint Venture Agreement entered into by the partners shall be submitted with thebid.
2. All the partners should meet out the minimum qualifying criteria required for the bid and collectively must meet the criteria specified in full. Failure to comply with this requirement will result in rejection of the Joint Venture Bid
3. The performance security of Joint Venture shall be in the name of partner Lead Partner / JointVenture.
4. Attach thepowerofattorneyofthepartnersauthorizing theBidSignatory(ies)on behalfoftheJointVenture.
5. An individual Bidder cannot at the same time be member of a Joint Venture applying for this Bid. Further, a member of particular Bidder Joint Venture cannot be member of any other Bidder Joint Venture applying for this bid.
6. Furnish details of participation proposed in the Joint venture asbelow

| PARTICIPATION DETAILS | FIRM 'A' (Lead Partner) | FIRM 'B' | FIRM 'C' |
|---|---|---|---|
| Financial | | | |
| Name of the Banker(s) | | | |
| Planning | | | |
| Construction Equipment | | | |
| Key Personnel | | | |
| Execution of Work (Give Details on Contribution of each) | | | |

7. ThepartnersofJ.V.shouldsatisfythequalificationcriteriaasbelow:

(a) The lead partner must have a share of minimum 51% in theJ.V.
(b) The other partner(s) must have a share of minimum 26% in theJ.V.
(c) The lead partner and the other partner must also meet 51% and 26% of the all qualification criteria respectively except for the requirement of work experience described in Annexure I- 1(A). However both the partners must satisfy the full (100%) qualification criteria jointly. for this purpose the qualification of individual partners shall be added (for annual average turnover and for bid capacityonly).
(d) For the requirement contained in Annexure -I-1(A) for JointVenture.
   i. Out of 3 similar work of value more than 20% pf PAC, at least 2 work must be done by lead partner and one work done by otherpartner.

   OR

   ii. Out of 2 similar work of value more than 30% of PAC, at least 1 (one) work must be done by lead partner and 1 (one) work to be done by otherpartner,

   OR

   iii. Incaseofone similarworkofvaluemorethan 50%ofPACtheleadpartnermustsatisfythecriteria. Howevertheotherpartnermustsatisfythecriteria in(i)abovei.e.at least20%ofPAC.

***Annexure - H***

**(*See clause 12 of Section 2 –ITB & clause 4 of GCC*)**

## ORGANIZATIONAL DETAILS

**(To be Contained in Envelope - A)**

| S. No. | Particulars | Details |
|---|---|---|
| 1. | Registration number issued by Centralized Registration System of Govt. of M.P. or Proof of application for registration. | (If applicable, scanned copy of proof of application for registration to be uploaded) |
| 2. | ValidRegistrationofbidderinappropriateclass throughCentralizedRegistrationofGovt.ofMP | RegistrationNo._____Date_____ (Scanned copy of Registration to be uploaded) |
| 3. | Name of Organization/ Individual/ Proprietary Firm/ Partnership Firm | |
| 4. | Entity of Organization Individual/ Proprietary Firm/ Partnership Firm (Registered under Partnership Act)/ Limited Company (Registered under the Companies Act–1956)/ Corporation/ Joint Venture | |
| 5. | PAN Number | |
| 6. | GST Number | |
| 7. | Address of Communication | |
| 8. | Telephone Number with STD Code | |
| 9. | Fax Number with STD Code | |
| 10. | Mobile Number | |
| 11. | E-mail Address for all communications | |
| | **Details of Authorized Representative** | |
| 12. | Name | |
| 13. | Designation | |
| 14. | Postal Address | |
| 15. | Telephone Number with STD Code | |
| 16. | Fax Number with STD Code | |
| 17. | Mobile Number | |
| 18. | E-mail Address | |

Note: *In case of partnership firm and limited company certified copy of partnership deed/ Articles of Association and Memorandum of Association along with registration certificate of the company shall have to be enclosed.*

**Signature of BidderwithSeal**

Date:_____

**Annexure –I**

(*See clause 14 of Section 2-ITB*)

# Envelope – B, Technical Proposal

**Technical Proposal shall comprise the following documents:**

| Sno | Particulars | Details to be submitted |
|---|---|---|
| 1 | Experience – Financial & Physical | Annexure - I (Format: I-1) |
| 2 | Annual Turnover | Annexure - I (Format: I-2) |
| 3 | List of technicalpersonnelfor key positions | Annexure - I (Format: I-3) |
| 4 | List of Key equipments/ machines for quality control labs | Annexure - I (Format: I-4) |
| 5 | List of Key equipments/ machines for construction work | Annexure - I (Format: I-5) |

***Note:***

1. *Technical Proposal should be uploaded duly page numbered andindexed.*
2. *Technical Proposal uploaded otherwise will not beconsidered.*

***Annexure - I (Format:I-1)***

**(*See clause 14 of Section 2-ITB*)**

## FINANCIAL & PHYSICAL EXPERIENCE DETAILS

**A. FinancialRequirement:**

**The bidder should have completed either of the below:**

a) three similar works each costing not less than the amount equal to 20% of the probable amount of contract during the last 3 financial years;or

b) two similar works each costing not less than the amount equal to 30% of the probable amount of contract during the last 3 financial years;or

c) one similar work of aggregate cost not less than the amount equal to 50% of the probable amount of contract in any one financial year during the last 3 financial years;

**To be filled in by the contractor:**

*i. Details of successfully completed similar works shall be furnished in thefollowingformat.*

*ii. Certificate duly signed by the employer shall be enclosed for each completed similar work.*

NIL

| Agreement Number & Year | Name of Work | Date of Work Order | Date of Completion | Amount of Contract | Employer's Name and Address |
|---|---|---|---|---|---|
| | | | | | |
| | | | | | |
| | | | | | |
| | | | | | |

**Existing commitments – (Value of 'C' for Bid Capacity formula)**

| Agreement Number & Year | Name of Work | Date of Work Order | Date of Completion | Amount of Contract | Amount of balance work | Employer's Name and Address |
|---|---|---|---|---|---|---|
| | | | | | | |
| | | | | | | |
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**B. Physical Requirement:**

Execution of similar items of work in any one financial year during the last 3 financial years should not be less than the minimum physical requirement fixed for the work.

| SNo | Particulars | Actual Quantity Executed (To be filled in by the contractor) | | |
|---|---|---|---|---|
| | | Year – 1 | Year – 2 | Year – 3 |
| 1 | Physical qualification required | Yes/ No | | |
| 2 | Earthwork | | | |
| 3 | Concrete work | | | |

Note: 1. *Certificate duly signed by the employer shall be enclosed for the actual quantity executed in any one year during the last 3 financial years.*

*2. Similar works: The similarity shall be based on the physical size, complexity, methods technology or other characteristics of main items of work viz. earth work, cement concrete, Reinforced cement concrete, brick masonry, stone masonry etc.*

***Annexure - I (Format: I-2)***
**(*See clause 14 of Section 2-ITB*)**

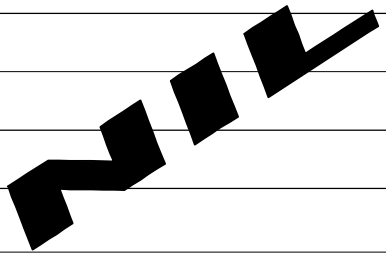
## ANNUAL TURN OVER

**Requirement:**

Average annual construction turnover on the construction works not less than 50% of the probable amount of contract during the last 5 financial years;

**To be filled in by the contractor:**

| Financial Year | Payments received for contracts in progress or completed |
|---|---|
| 1 | |
| 2 | |
| 3 | |
| 4 | |
| 5 | |




Note:

*i. Annual turnover of construction should be certified by the CharteredAccountant.*

*ii. Audited balance sheet including all related notes, and income statementsfor the above financial years to beenclosed.*

**Bid Capacity**

Applicants who meet the minimum qualifying criteria in the evaluation as stated above are to be evaluated further for bid capacity as under:

**Bid Capacity = (1.5 A X B) - C**

Where

A = Maximum value of civil engineering works executed in any one year during the last five year (10% weightage per year shall be given to bring the value of work executed at present price level)

B = Proposed contract period inyears.

C= Amount of work in hand atpresent.

***Annexure - I (Format: I-3)***

(*Seeclause14 ofSection2–ITB&Clause6 ofGCC*)

## List of Technical Personnel for the Key Positions

| Minimum requirement | | | | | | | Available with the bidder | | | | | | |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| S. No. | Key Position | Minimum requirement | Qualification | Age | Similar work experience | Total Work Experience | S. No. | Name of Personnel | Key Position | Qualification | Age | Similar work experience | Total Work Experience |
| | | | | | NIL | | | | | | | | |
| | | | | | | | | | | | | | |
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***Annexure I (Format: I-4)***

**(*See clause 14 of Section 2-ITB*)**

**List of Key Equipments/ Machines for Quality Control Labs**

| **Minimum requirement** | | | **Available with the bidder** | |
|---|---|---|---|---|
| **S. No.** | **Name of Equipment/ Machinery** | **Quantity** | **Name of Machinery** | |
| | | | | |
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NIL

Section 2 – Annexure I (Format I-4)

***Annexure - I (Format: I-5)***

**(*See clause 14 of Section 2-ITB*)**

## List of Key Equipments/ Machines for Construction Work

| Minimum requirement | | | Available with the bidder | |
|---|---|---|---|---|
| **S. No.** | **Name of Equipment/ Machinery** | **Quantity** | **Name of Equipment/ Machinery** | **Quantity** |
| | | | | |
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NIL

**Annexure –J**

(***See clause 14 of Section 2-ITB***)

## FINANCIAL BID
## (To Be Contained in Envelope-C)
## (The financial bid only submitted online not submit in physical form)

**NAME OFWORK**_____

I/We hereby bid for the execution of the above work within the time specified at the

**rate(infigures)**_____**(inwords)**_____**percent below/ above or at par** based on the Bill of Quantities and item wise rates given therein in all respects and in accordance with the specifications, designs, drawings and instructions in writing in all respects in accordance with such conditions so far as applicable. I/We have visited the site of work and am/ are fully aware of all the difficulties and conditions likely to affect carrying out the work. I/We have fully acquainted myself/ourselves about the conditions in regard to accessibility of site and quarries/kilns, nature and the extent of ground, working conditions including stacking of materials, installation of tools and plant conditions effecting accommodation and movement of labour etc. required for the satisfactory execution ofcontract.

Should this bid be accepted, I/We hereby agree to abide by and fulfill all the terms and provisions of the said conditions of contract annexed hereto so far as applicable, or in default thereof to forfeit and pay to the Governor of Madhya Pradesh or his successors in office the sums of money mentioned in the said conditions.

**Note:**

*i. Only one rate of percentage above or below or at par based on the Bill of Quantities and item wise rates given therein shall bequoted.*

*ii. Percentage shall be quoted in figures as well as in words. If any difference in figures and words is found lower of the two shall be taken as valid and correct rate. If the bidder is not ready to accept such valid and correct rate and declines to furnish performance security/Pratibhuti Ki Rashi and sign the agreement his earnest money deposit shall beforfeited.*

*iii. In case the percentage "above" or "below" is not given by a bidder, his bid shall be treated asnon-responsive.*

*iv. All duties, royalties, levies and taxes except Goods and Services Tax (GST) are included in the rates (in case of percentage rate bids)/ lump-sum offer (in case of Lump- Sum bids) quoted by thebidder.*

**Signature of Bidder**
**Name of Bidder**

The above bid is hereby accepted by me on behalf of the Governor of Madhya Pradeshdatedthe_____dayof_____20

_____

**Signature of Officer by whom accepted**

**Annexure –K**

(*See clause 15 of Section 2-ITB*)

## MATERIALS TO BE ISSUED BY THE DEPARTMENT

| Sno | Name of material | Rate (Issue rate) | Unit | Remarks |
|---|---|---|---|---|
| | | | | |
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**Annexure –L**

**(*See clause 21 of Section 2-ITB*)**

# (LETTER OF ACCEPTANCE(LOA)

No. _____ Dated:_____

To,

M/s._____

(Name and address of the contractor)

Subject:_____

(Name of the work as appearing in the bid for the work)

Dear Sir (s),

Your bid for the work mentioned above has been accepted on behalf of the Governor of Madhya Pradesh at your bidedpercentage _____ below/ above or at par the Bill of Quantities and item wise rates given therein.

You are requested to submit within 15 (Fifteen) days from the date of issue of this letter:

a. The performance security/Pratibhuti Ki Rashi/ performance guarantee ofRs. _____ (in figures) (Rupees _____in words only). The performance security/Pratibhuti Ki Rashi shall be in the shape of term deposit receipt/ bank guarantee of any nationalized / schedule commercial bank valid up to three months after the expiry of defects liabilityperiod.
b. Sign the contractagreement.

Please note that the time allowed for carrying out the work as entered in the bid is _____months including/ excluding rainy season, shall be reckoned from the date of signing the contract agreement.

Signing the contract agreement shall be reckoned as intimation to commencement of work and no separate letter for commencement of work is required. Therefore, after signing of the agreement, you are directed to contact the Engineer-in-charge for taking the possession of site and necessary instructions to start the work.

**Yours Faithfully**

**CMO**

**Annexure –M**
**(*See clause 22 of Section 2-ITB*)**

# PERFORMANCE SECURITY/PRATIBHUTI KI RASHI

**To**

_____[name ofEmployer]
_____
_____[address ofEmployer]
_____

WHEREAS_____[name and address of Contractor] (Hereinaftercalled"theContractor")hasundertaken,inpursuanceofLetterofAcceptance No._____dated_____to execute_____[name of Contract and brief description of Works] (hereinafter called "theContract").

AND WHEREAS it has been stipulated by you in the said Contract that the Contractor shall furnish you with a Bank Guarantee by a recognized bank for the sum specified therein as security for compliance with his obligation in accordance with the Contract;

AND WHEREAS we have agreed to give the Contractor such a Bank Guarantee:

NOW THEREFORE we hereby affirm that we are the Guarantor and responsible to you on behalf of the Contractor, up to atotalof_____[amount ofguarantee]* _____ (in words), such sum being payable in the types and proportions of currencies in which the Contract Price is payable, and we undertake to pay you, upon your first written demand and withoutcavilorargument,anysumorsumswithinthelimitsof_____[amount of guarantee] as aforesaid without your needing to prove or to show grounds or reasons for your demand for the sum specifiedtherein.

We hereby waive the necessity of your demanding the said debt from the contractor before presenting us with the demand.

We further agree that no change or addition to or other modification of the terms of the Contract of the Works to be performed there under or of any of the Contract documents which may be made between you and the Contractor shall in any way release us from any liability under this guarantee, and we hereby waive notice of any such change, addition or modification.

This guarantee shall be valid until 6 (three) months from the date of expiry of the Defect Liability Period.

Signature, Name and Seal oftheguarantor_____

_____NameofBank_____

_____Address ____

_____Phone No., Fax No., E-mail Address, ofSigningAuthority_____

_____Date_____

* An amount shall be inserted by the Guarantor, representing the percentage the Contract Price specified in the Contract including additional security for unbalanced Bids, if any and denominated in IndianRupees.

# SECTION 3

## Conditions of Contract
## Part – I General Conditions of Contract [GCC]

## Table of Clauses of GCC


| Clause No | Particulars | Clause No | Particulars |
|---|---|---|---|
| | **A. General** | 21 | Payments for Variations and / or Extra Quantities |
| 1 | Definitions | 22 | No compensation for alterations in or restriction of work to be carried out. |
| 2 | Interpretations and Documents | 23 | No Interest Payable |
| 3 | Language and Law | 24 | Recovery from Contractors |
| 4 | Communications | 25 | Tax |
| 5 | Subcontracting | 26 | Check Measurements |
| 6 | Personnel | 27 | Termination by Engineer in Charge |
| 7 | Force Majeure | 28 | Payment upon Termination |
| 8 | Contractor's Risks | 29 | Performance security/Pratibhuti Ki Rashi |
| 9 | Liability For Accidents To Person | 30 | Security Deposit |
| 10 | Contractor to Construct the Works | 31 | Price Adjustment |
| 11 | Discoveries | 32 | Mobilization and Construction Machinery Advance |
| 12 | Dispute Resolution System | 33 | Secured Advance |
| | **B. Time Control** | 34 | Payments Certificates |
| 13 | Programme | | **E. Finishing the Contract** |
| 14 | Extension of Time | 35 | Completion Certificate |
| 15 | Compensation for Delay | 36 | Final Account |
| 16 | Contractor's quoted percentage | | **F. Other Conditions of Contract** |
| | **C. Quality Control** | 37 | Currencies |
| 17 | Tests | 38 | Labour |
| 18 | Correction of Defects noticed during the Defect Liability Period | 39 | Compliance with Labour Regulations |
| | **D. Cost Control** | 40 | Audit and Technical Examination |
| 19 | Variations - Change in original Specifications, Designs, Drawings etc. | 41 | Death or Permanent Invalidity of Contractor |
| 20 | Extra Items | 42 | Jurisdiction |

# A. General

## 1. DEFINITIONS

**Bill of Quantities**: means the priced and completed Bill of Quantities forming part of theBid.

**Chief Engineer**: Chief Engineer, Urban Administration and Development MP, BPL.

**Completion**: means completion of the work as certified by the Engineer-in-Charge, in accordance with provisions of agreement.

**Contract:** means the Contract between the Employer and the Contractor to execute, complete and/or maintain the work. Agreement is synonym of Contract and carries the same meaning whereverused.

**Contract Data**: means the documents and other information which comprise of the Contract.

**Contractor**: means a person or legal entity whose bid to carry out the work has been accepted by the Employer.

**Contractor's bid**: means the completed bid document submitted by the Contractor to the Employer.

**Contract amount**: means the amount of contract worked out on the basis of accepted bid.

**Completion of work**: means completion of the entire contracted work. Exhaustion of quantity of any particular item mentioned in the bid document shall not imply completion of work or any componentthereof.

**Day**: means the calendar day.

**Defect**: means any part of the work not completed in accordance with the specifications included in the contract.

**Department**: means Department of the State Government viz. Water Resources Department, Public Works Department, Public Health Engineering Department, Rural Engineering Service and any other organisation which adopts this document.

**Drawings**: means drawings including calculations and other information provided or approved by theEngineer-in-Charge.

**Employer**: means the party as defined in the **Contract Data**, who employs the Contractor to carry out the work. The Employer may delegate any or all functions to a person or body nominated by him for specified functions. The word Employer / Government / Department wherever used denote the Employer.

**Engineer**: Sub Engineer of Urban Local Bodies.

**Engineer in charge**: Means Sub Engineer if having additional charge in ULB**.**

**Equipment**: means the Contractor's machinery and vehicles brought temporarily to the Site for execution of work.

**Government**: means Government of Madhya Pradesh.

**In Writing**: means communicated in written form and delivered against receipt.

**Material**: means all supplies, including consumables, used by the Contractor for

incorporation in the work.

**Superintending Engineer**: means Superintending Engineer-in-Charge of the Circle concerned.

Executive Engineer, Urban Administration and Development, Bhopal Division, Bhopal.

**Stipulated period of completion**: means the period in which the Contractor is required to complete the work. The stipulated period is specified in the **ContractData.**

**Specification**: means the specification of the work included in the Contract and any modification or addition made or approved by the Engineer-in-Charge.

**Start Date:** means the date of signing of agreement for the work.

**Sub-Contractor**: means a person or corporate body who has a Contract with the Contractor, duly authorised to carry out a part of the construction work under the Contract.

**Temporary Work**: means work designed, constructed, installed, and removed by the Contractor that are needed for construction or installation of the work.

**Tender/Bid, Tenderer/Bidder**: are the synonyms and carry the same meaning where ever used.

**Variation**: means any change in the work which is instructed or approved as variation under this contract.

**Work**: The expression "work" or "works" where used in these conditions shall unless there be something either in the subject or context repugnant to such construction, be construed and taken to mean the work by virtue of contract, contracted to be executed, whether temporary or permanent and whether original, altered, substituted oradditional.

## 2. INTERPRETATIONS AND DOCUMENTS

### Interpretations

In the contract, except where the context requires otherwise:

a. words indicating one gender include allgenders;
b. Words indicating the singular also include the plural and viceversa.
c. provisions including the word “agree”, “agreed” or “agreement” require the agreement to be recorded inwriting;
d. written” or “in writing” means hand-written, type-written, printed or electronically made, and resulting in a permanentrecord;

### Documents Forming Part of Contract:

1. NIT with allamendments.
2. Instructions to Bidders (ITB, Bid Data Sheet with allAnnexures)
3. Conditions ofContract:
   i. Part I General Conditions of Contract and the Contract Data; with allAnnexures
   ii. Part II Special Conditions ofContract.
4. Specifications
5. Drawings
6. Bill ofQuantities
7. Technical and FinancialBid
8. Agreement,and
9. Any other document(s), asspecified.

**3. Language andLaw**

The language of the Contract and the law governing the Contract are stated in the Contract Data.

**4. Communications**

All certificates, notice or instruction to be given to the Contractor by Employer/Engineer shall be sent to the address or contact details given by the Contractor in [Annexure H of ITB]. The address and contact details for communication with the Employer/Engineer shall be as per the details given in the Contract Data. Communication between parties that are referred to in the conditions shall be in writing. The notice sent by facsimile (fax) or other electronic means (email) shall also be effective on confirmation of the transmission. The notice sent by registered post or speed post shall be effective on delivery or at the expiry of the normal delivery period as undertaken by the postal service. In case of any change in address for communication, the same shall be immediately notified to Engineer-in-Charge.

**5. Subcontracting**

Subcontracting shall be permitted for contracts of value more than amount specified in the Contract Data with following conditions.

a. The Contractor may subcontract up to 25 percent of the contract price with the approval of the Employer in writing, but will not assign the Contract. Subcontracting shall not alter the Contractor'sobligations.
b. Following shall not form part ofsubcontracting:
    i. Hiring of labour through a labourcontractor.
    ii. The purchase of Materials to be incorporated in theworks.
    iii. Hiring of plant &machinery
c. The sub-contractor will have to be registered in the **appropriate category** inthe centralised registration system for contractors of theGoMP.

**6. Personnel**

The Contractor shall employ for the construction work and routine maintenance the technical personnel as provided in the Annexure I-3 of Bid Data Sheet, if applicable. If the Contractor fails to deploy required number of technical staff, recovery as specified in the Contract Data will be made from the Contractor.

If the Engineer asks the Contractor to remove a person who is a member of the Contractor's staff or work force, stating the reasons, the Contractor shall ensure that the person leaves the Site within three days and has no further connection with the Works in the Contract.

**7. ForceMajeure**

The term "Force Majeure" means an exceptional event or circumstance:

(a) Which is beyond a Party'scontrol,

(b) Which such Party could not reasonably have provided against before entering into theContract,

(c) Which, having arisen, such Party could not reasonably have avoided or overcome,and

(d) Which is not substantially attributable to the otherParty.

Force Majeure may include, but is not limited to, exceptional events or circumstances of the kind listed below, so long as conditions (a) to (d) above are satisfied:

(i) War, hostilities (whether war be declared or not), invasion, act of foreign enemies,

(ii) Rebellion, terrorism, sabotage by persons other than the Contractor's Personnel, revolution, insurrection, military or usurped power, or civilwar,

(iii) Riot, commotion, disorder, strike or lockout by persons other than the Contractor'sPersonnel,

(iv) Munitions of war, explosive materials, ionising radiation or contamination by radio-activity, except as may be attributable to the Contractor's use of such munitions, explosives, radiation or radio-activity,and

(v) Natural catastrophes such as earthquake, hurricane, typhoon or volcanic activity.

**7.2.** In the event of either party being rendered unable by force majeure to perform any duty or discharge any responsibility arising out of the contract, the relative obligation of the party affected by such force majeure shall upon notification to the other party be suspended for the period during which force majeure event lasts. The cost and loss sustained by either party shall be borne by respectiveparties.

For the period of extension granted to the Contractor due to Force Majeure the price adjustment clause shall apply but the penalty clause shall not apply. It is clarified that this sub clause shall not give eligibility for price adjustment to contracts which are otherwise not subject to the benefit of price adjustment clause.

The time for performance of the relative obligation suspended by the force majeure shall stand extended by the period for which such cause lasts. Should the delay caused by force majeure exceed **twelve** months, the parties to the contract shall be at liberty to foreclose the contract after holding mutual discussions.

**8. Contractor'sRisks**

All risks of loss or damage to physical property and of personal injury and death which arise during and in consequence of the performance of the Contract are the responsibility of the Contractor.

All risks and consequences arising from the inaccuracies or falseness of the documents, drawing, designs, other documents and/or information submitted by the contractor shall be the responsibility of the Contractor alone, notwithstanding the fact that the designs/ drawings or other documents have been approved by thedepartment.

**9. Liability for Accidents toPerson**

The contractor shall be deemed to have indemnified and saved harmless the Government against all action, suits, claims, demands, costs etc. arising in connection with injuries suffered by any persons employed by the contractor or his subcontractor for the works whether under the General law or under workman's compensation Act, or any other statute in force at the time of dealing with the question of the liability of employees for the injuries suffered by employees and to have taken steps properly to ensure against any claim there under.

**10. Contractor to Construct theWorks**

The Contractor shall construct, install and maintain the Works in accordance with the Specifications and Drawings as specified in the **Contract Data.**

In the case of any class of work for which there is no such specification as is mentioned in Contract Data, such work shall be carried out in accordance with the instructions and requirement of the Engineer-in-charge.

The contractor shall supply and take upon himself the entire responsibility of the sufficiency of the scaffolding, timbering, machinery, tools and implements, and generally of all means used for the fulfilment of this contract whether such means may or may not be approved or recommended by theEngineer.

**11. Discoveries**

Anything of historical or other interest or of significant value unexpectedly discovered on the Site shall be the property of the Employer. The Contractor shall notify the Engineer of such discoveries and carry out the Engineer's instructions for dealing with them.

**12. Dispute ResolutionSystem**

No dispute can be raised except before the Competent Authority as defined in Contract Data in writing giving full description and grounds of dispute. It is clarified that merely recording protest while accepting measurement and/or payment shall not be taken as raising a dispute.

No dispute can be raised after 45 days of its first occurrence. Any dispute raised after expiry of 45 days of its first occurrence shall not be entertained and the Employer shall not be liable for claims arising out of suchdispute.

The **Competent Authority** shall decide the matter within 45days.

Appeal against the order of the Competent Authority can be preferred within 30 days to the **Appellate Authority** as defined in **the Contract Data**. The Appellate Authority shall decide the dispute within 45 days.

Appeal against the order of the Appellate Authority can be preferred before the Madhya Pradesh Arbitration Tribunal constituted under Madhya Pradesh *MadhyasthamAdhikaranAdhiniyam*, 16363.

The Contractor shall have to continue execution of the Works with due diligence notwithstanding pendency of a dispute before any authorityorforum.

## B. TimeControl

### 13. Programme

Within the time stated in the Contract Data, the Contractor shall submit to the Engineer for approval a Programme showing the general methods, arrangements, order and timing for all the activities for the construction of works.

**The program shall be supported with all the details regarding key personnel, equipment and machinery proposed to be deployed on the works for its execution.** The contractor shall submit the list of equipment and machinery being brought to site, the list of key personnel being deployed, the list of machinery/equipment being placed in field laboratory and the location of field laboratory along with the Programme.

An update of the Programme shall be a programme showing the actual progress achieved on each activity and the effect of the progress achieved on the timing of the remaining Works, including any changes to the sequence of the activities.

The Contractor shall submit to the Engineer for approval an updated Programme at intervals no longer than the period stated in the **Contract Data**. If the Contractor does not submit an updated Programme within this period, the Engineer may withhold the amount stated in the **Contract Data** from the next payment certificate and continue to withhold this amount until the next paymentafterthedateonwhichtheoverdueProgrammehasbeensubmitted.

The Engineer's approval of the Programme shall not alter the Contractor's obligations.

**14. Extension ofTime**

The contract is for completion of works and therefore non approval of EOT shall not in any way invalidate the contract. The contractor will have to complete theworks.

In the event of delays attributable to the contractor, the EOT shall not be given by the Engineer-in-Charge and the liquidated Damages shall be levied from thecontractor in accordance with the provisions of the contract.

In the event, the delays are not attributable to the contractor the EOT may be issued by the Engineer-in-Charge without imposition of Liquidated Damages either suo-motto or on a written request of the contractor. It is clarified that out of the total delays in completion of works, the EOT shall be issued only for the part, which is not attributable to thecontractor.

**15. Compensation fordelay**

The time allowed for carrying out the work, as entered in the agreement, shall be strictly observed by the Contractor.

The time allowed for execution of the contract shall commence from the date of signing of the agreement. It is clarified that the need for issue of work order is dispensedwith.

In the event milestones are laid down in the Contract Data for execution of the works, the contractor shall have to ensure strict adherence to the same.

Failure of the Contractor to adhere to the timelines and/or milestones shall attract such liquidated damages as is laid down in the Contract Data.

In the event of delay in execution of the Works as per the timelines mentioned in the Contract Data the Engineer-in-charge shall retain from the bills of the Contractor amount equal to the liquidated damages leviable until the Contractor makes such delays good. However, the Engineer-in-charge shall accept bankable security in lieu of retaining suchamount.

If the Contractor is given extension of time after liquidated damages have been paid, the Engineer in Charge shall correct any over payment of liquidated damages by the Contractor in the next payment certificate.

In the event the Contractor fails to make good the delay until completion of the stipulated contract period (including extension of time) the sum so retained shall be adjusted against the liquidated damageslevied.

**16. Contractor's quotedpercentage**

The Contractor’s quoted percentage rate referred to in the "Bid for works" will be deducted/ added from/to the net amount of the bill after deducting the cost of material supplied by the department.

## C. QualityControl

**17. Tests**

The Contractor shall be responsible for:

a. Carrying out the tests prescribed in specifications,and

b. For the correctness of the test results, whether preformed in his laboratory orelsewhere.

The contractor shall have to establish field laboratory within the time specified and having such equipments as are specified in the **Contract Data**.

Failure of the Contractor to establish laboratory shall attract such penalty as is specified in the **Contract Data.**

**18. Correction of Defects noticed during the Defect LiabilityPeriod**

The Defect Liability Period of work in the contract shall be as per the **Contract Data**.

The Contractor shall promptly rectify all defects pointed out by the Engineer well before the end of the Defect Liability Period. The Defect Liability Period shall automatically stand extended until the defect isrectified.

If the Contractor has not corrected a Defect pertaining to the Defect Liability Period to the satisfaction of the Engineer, within the time specified by the Engineer, the Engineer will assess the cost of having the Defect corrected, and the cost of correction of the Defect shall be recovered from the Performance security/Pratibhuti Ki Rashi or any amount due or that may become due to the contractor and other available securities.

## D. CostControl

**19. Variations - Change in original Specifications, Designs, and Drawingsetc.**

The Engineer-in-charge shall have power to make any alterations, omissions or additions to or substitutions in the original specifications, drawings, designs and instructions, that may appear to him to be necessary during the progress of the work and the contractor shall carry out the work in accordance with any instructions which may be given to him in writing signed by the Engineer-in-charge, and such alterations, omission, additions or substitutions shall not invalidate the contract and any altered, additional or substituted work, which the contractor may be directed to do in the manner above specified, as part of the work, shall be carried out by the contractor on the same conditions in all respects on which he agrees to do the main work.

The time for the completion of the work shall be adjusted in the proportion that the altered, additional or substituted work bears to the original contract work and the certificate of the Engineer-in-charge shall be conclusive as to such proportion.

**20. Extraitems**

**20.1** All such items which are not included in the priced BOQ shall be treated as extra items.

**21. Payments for Variations and / or ExtraQuantities**

The rates for such additional (Extra quantity), altered or substituted work / extra items under this clause shall be worked out in accordance with the following provisions in their respectiveorder:-

a. The contractor is bound to carry out the additional (Extra quantity), work at **the same rates** as are specified in the contract for thework.

b. If the item is not in the priced BOQ and is included in the SOR of the department, the rate shall be arrived at by applying the quoted tender percentage on the SOR rate.

c. **If the rates for the altered or substituted work are not provided in applicable SOR** - such rates will be derived from the rates for a similar class (type) of work as is provided in the contract (priced BOQ) for thework.

d. **If the rates for the altered, substituted work cannot be determined in the manner specified in the sub clause (c) above -** then the rates for such composite work item shall be worked out on the basis of the concerned Schedule of Rates minus/plus the percentage quoted by thecontractor.

e. If the rates for a particular part or parts of the item is not in the Schedule of Rates and the rates for the altered, or substituted work item cannot be determined in the manner specified in sub clause (b) to (d) above, the rate for such part or parts will be determined by the Competent Authority as defined in the Contract Data on the basis of the rate analysis derived out of prevailing market rates when the work wasdone.

f. But under no circumstances, the contractor shall suspend the work on the plea of non-acceptability of rates on items falling under sub clause (a) to (d). In case the contractor does not accept the rate approved by the Engineer in Charge for a particular item, the contractor shall continue to carry out the item at the rates determined by the Competent Authority. The decision on the final rates payable shall be arrived at through the dispute settlement procedure.

**22. No compensation for alterations in or restriction of work to be carriedout.**

If at any time after the commencement of the work, the Engineer-in-charge, for any reason whatsoever, not require the whole or any part of the work as specified in the bid to be carried out; the Engineer-in-charge shall give notice in writing of the fact to the Contractor and withdraw that whole or any part of the work.

The Contractor shall have no claim to any payments or compensation whatsoever, on account of any profit or advantage which he might have derived from the execution of work in full or on account of any loss incurred for idle men and machinery due to any alteration or restriction of work for whatsoever reason.

The Engineer-in-charge may supplement the work by engaging another agency to execute such portion of the work, without prejudice to his rights.

**23. No InterestPayable**

No interest shall be payable to the Contractor on any payment due or awarded by any authority.

**24. Recovery fromContractors**

Whenever any claim against the Contractor for the payment arises under the contract, the Department may be entitled to recover such sum by:

**(a)** Appropriating, in part or whole of the Performance security/Pratibhuti Ki Rashi and Additional Performance security/Pratibhuti Ki Rashi, if any; and/or Security Deposit and / or any sums payable under the contract to thecontractor.

**(b)** If the amount recovered in accordance with (a) above is not sufficient, the balance sum may be recovered from any payment due to the contractor under any other contract of the department, including the securities which become due forrelease.

**(c)** The department shall, further have an additional right to effect recoveries as arrears of land revenue under the *M.P. Land RevenueCode*.

**25. Tax**

The rate (in case of percentage rate bids)/ lump-sum offer (in case of lump-sum bids) quoted by the Contractor shall be deemed to be inclusive of all duties, royalties, levies and taxes except Goods and Services Tax (GST). The amount of applicable GST will be paid separately to th e Contractor with each bill at the time of payment."

The liability, if any, on account of quarry fee, duties, taxes (except GST), royalties and levies in respect of material consumed of services rendered on public work shall be borne by the Contractor"

Any changes in the taxes due to change in legislation or for any other reason shall not be payable to the contractor.

**26. CheckMeasurements**

The department reserves to itself the right to prescribe a scale of check measurement of work in general or specific scale for specific works or by other special orders.

Checking of measurement by superior officer shall supersede measurements by subordinate officer(s), and the former will become the basis of the payment.

Any over/excess payments detected, as a result of such check measurement or otherwise at any stage up to the date of completion of the defect liability period specified in this contract, shall be recoverable from the Contractor, as per **clause 24**above.

**27. Termination by Engineer inCharge**

If the Contractor fails to carry out any obligation under the Contract, the Engineer in Charge may by notice require the Contractor to make good the failure and to remedy it within a specified reasonable time.

The Engineer in Charge shall be entitled to terminate the Contract if the Contractor

**a)** abandons the Works or otherwise plainly demonstrates the intention not to continue performance of his obligations under theContract;

**b)** the Contractor is declared as bankrupt or goes into liquidation other than for approved reconstruction oramalgamation;

**c)** without reasonable excuse fails to comply with the notice to correct a particular defect within a reasonable period oftime;

**d)** the Contractor does not maintain a valid instrument of financial security as prescribed;

**e)** the Contractor has delayed the completion of the Works by such duration for which the maximum amount of liquidated damages isrecoverable;

**f)** If the Contractor fails to deploy machinery and equipment or personnel or set up a field laboratory as specified in the **ContractData**;

**g)** If the contractor, in the judgment of the Engineer in charge has engaged in corruptorfraudulentpracticesincompetingfororinexecutingthecontract;

**h)** Any other fundamental breaches as specified in the **ContractData**.

In any of these events or circumstances, the Engineer in Charge may, upon giving 14 days' notice to the Contractor, terminate the Contract and expel the Contractor from the Site. However, in the case of sub-paragraph (b) or (g) of **clause27.2**,theEngineerinChargemayterminatetheContractimmediately.

Notwithstanding the above, the Engineer-in-Charge may terminate the Contract for convenience by giving notice to the Contractor.

**28. Payment uponTermination**

If the contract is terminated under **clause 27.3,** the Engineer shall issue a certificate for value of the work accepted on final measurements, less Advance Payments and Penalty as indicated in the **Contract Data**. The amount so arrived at shall be determined by the **Engineer-in-Charge** and shall be final and binding on both the parties.

Payment on termination under **clause 27. 4** above -

If the Contract is terminated under **clause 27.4** above, the Engineer shall issue a certificate for the value of the work done, the reasonable cost of removal of Equipment, repatriation of the Contractor's personnel employed solely on the Works, and the Contractor's costs of protecting and securing the Works and less advance payments received up to the date of the certificate, less other recoveries due in terms of the contract and less taxes due to be deducted at source as per applicable law.

If the total amount due to the Employer exceeds any payment due to the Contractor, the difference shall be recovered as per **clause 24** above.

**29. Performance security/Pratibhuti KiRashi**

The Contractor shall have to submit performance security/Pratibhuti Ki Rashi and additional performance security/Pratibhuti Ki Rashi, if any, as specified in the **Bid Data Sheet** at the time of signing of the contract. The contractor shall have to ensure that such performance security/Pratibhuti Ki Rashi and additional performance security/Pratibhuti Ki Rashi, if any, remains valid for the period as specified in the Contract Data.

**30. SecurityDeposit-**

Security Deposit shall be deducted from each running bill at the rate as specified in the **Contract Data**. The total amount of Security Deposit so deducted shall not exceed the percentage of Contract Price specified in the **Contract Data.**

The security deposit may be replaced by equivalent amount of bank guarantee or fixed deposit receipt assigned to the Employer, with validity up to 3 (three) months beyond the completion of Defect Liability Period/ extended Defect Liability Period.

The Security Deposit shall be refunded on completion of Defect Liability Period.

## 31. PriceAdjustment

### Applicability

1. Price adjustment shall be applicable only if provided for in the **ContractData.**
2. The price adjustment clause shall apply only for the works executed from the date of signing of the agreement until the end of the initial intended completion date or extensions granted for reasons attributed to the Employer by theEngineer.
3. The Contractor shall not be entitled to any benefit arising from the price adjustment clause for extension in the contract period for reasons attributed to theContractor.
4. In the Force Majeure event the price escalation clause shallapply.

### Procedure

1. Contract price shall be adjusted for increase or decrease in rates and price oflabour, materials, fuels and lubricants in accordance with following principles and procedures and as per formula given in the **contractdata.**

2. The price adjustable shall be determined during each **quarter** from the formula given in the **contractdata**.

3. Following expression and meaning are assigned to the work done during each**quarter**:

   **R =** Total value of work during the **quarter**. It would include the amount of secured advance granted, if any, during the quarter, less the amount of secured advance recovered, if any during the **quarter, less value of material issued by the department, if any, during the quarter**.

4. Weightages of various components of the work shall be as per the **Contract Data.**

To the extent that full compensation for any rise or fall in costs to the contractor is not covered by the provisions of this or other clauses in the contract, the unit rates and prices included in the contract shall be deemed to include amounts to cover the contingency of such other rise or fall incosts.

The index relevant to any quarter, for which such compensation is paid, shall be the arithmetical average of the indices relevant of the calendar month.

For the purpose of clarity it is pointed out that the price adjustment may be either positive or negative, i.e. if the price adjustment is in favour of the Employer, the same shall be recovered from the sums payable to the Contractor.

## 32. Mobilization and Construction MachineryAdvance

Payment of advances shall be applicable if provided in the **Contract Data.**

If applicable, the Engineer in Charge shall make interest bearing advance payment to the contractor of the amounts stated in the **Contract Data**, against provision by the contractor of an unconditional Bank Guarantee in a form and by a nationalized/ scheduled banks, in the name as stated in the **Contract Data**, in amounts equal to the advance payment. The guarantee shall remain effective until the advance payment has been repaid, but the amount of the guarantee shall be progressively reduced by the amounts repaid by thecontractor.

The rate of interest chargeable shall be as per **Contract Data.**

The construction machinery advance, if applicable, shall be limited to 80% of the cost of construction machinery and admissible only for new construction machinery.

The advance payment shall be recovered as stated in the **Contract Data** by deducting proportionate amounts from payment otherwise due to the Contractor. No account shall be taken of the advance payment or its recovery in assessing valuations of work done, variations, price adjustments, compensation events, or liquidated damages.

## 33. Secured Advance

Payment of Secured Advance shall be applicable if provided in the **Contract Data.**

If applicable, the Engineer shall make advance payment against materials intended for but not yet incorporated in the Works and against provision by the contractor of an unconditional Bank Guarantee in a form and by a nationalized/ scheduled bank, in the name as stated in the **Contract Data**, in amounts equal to the advance payment. The guarantee shall remain effective until the advance payment has been adjusted, but the amount of the guarantee shall be progressively reduced by the amounts adjusted by thecontractor.

The amount of secured advance and conditions to be fulfilled shall be as stipulated in the **Contract Data.**

The Secured Advance paid shall be recovered as stated in the **Contract Data.**

## 34. PaymentCertificates

The payment to the contractor will be as follows for construction work**:**

**(a)** The Contractor shall submit to the Engineer monthly statements of the value of the work executed less the cumulative amount certified previously, supported with detailed measurement of the items of workexecuted.

**(b)** The Engineer shall check the Contractor's monthly statement and certify the amount to be paid to theContractor.

**(c)** The value of work executed shall be determined, based on themeasurements approved by the Engineer/Engineer-in-charge.

**(d)** The value of work executed shall comprise the value of the quantities of the items in the Bill of Quantitiescompleted.

**(e)** The value of work executed shall also include the valuation ofVariations and CompensationEvents.

**(f)** All payments shall be adjusted for deductions for advance payment, security deposit, other recoveries in terms of contract and taxes at source as applicable under thelaw.

**(g)** The Engineer may exclude any item certified in a previous certificate or reduce the proportion of any item previously certified in any certificate in the light of laterinformation.

**(h)** Payment of intermediate certificate shall be regarded as payments by way of advance against the final payment and not as payments for work actually done andcompleted.

**(i)** Intermediate payment shall not preclude the requiring of bad, unsound and imperfect or unskilled work to be removed and taken away and reconstructed or be considered as an admission of the due performance of the contractor any part thereof, in any respect or the occurring of anyclaim.

**(j)** The payment of final bill shall be governed by the provisions of **clause 36 ofGCC**.

## E. Finishing theContract

### 35. CompletionCertificate

A Completion Certificate in the prescribed format in **Contract Data** shall be issued by the Engineer-in-Charge after physical completion of the Work.

After final payment to the Contractor, a Final Completion Certificate in the prescribed format in the **Contract Data** shall be issued by the Engineer-in-Charge.

**36. FinalAccount**

The Contractor shall supply the Engineer with a detailed account of the total amount that the Contractor considers payable for works under the Contract within 21 days of issue of certificate of physical completion of works. The Engineer shall issue a Defects Liability Certificate and certify any payment that is due to the Contractor within 45 days of receiving the Contractor's account if it is correct and complete. If the account is not correct or complete, the Engineer shall issue within 45 days a schedule that states the scope of the corrections or additions that are necessary. If the Account is still unsatisfactory after it has been resubmitted, the matter shall be referred to the Competent Authority as defined in the Contract Data, who shall decide on the amount payable to the Contractor after hearing the Contractor and the Engineer in Charge.

In case the account is not received within 21 days of issue of Certificate of Completion as provided in clause 32.1 above, the Engineer shall proceed to finalise the account and issue a payment certificate within 28 days.

## F. Other Conditions ofContract

**37. Currencies**

All payments will be made in Indian Rupees.

**38. Labour**

The Contractor shall, unless otherwise provided in the Contract, make his own arrangements for the engagement of all staff and labour, local or other, and for their payment, housing, feeding and transport.

The Contractor shall, if required by the Engineer, deliver to the Engineer a return in detail, in such form and at such intervals as the Engineer may prescribe, showing the staff and the numbers of the several classes of labour from time to time employed by the Contractor on the Site and such other information as the Engineer mayrequire.

**39. Compliance with LabourRegulations**

**39.1.** During continuance of the Contract, the Contractor and his sub-Contractors shall abide at all times by all existing labour enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labour law (including rules), regulations, bye laws that may be passed or notification that may be issued under any labour law in future either by the State or the Central Government or the local authority. Salient features of some of the major labour laws that are applicable to construction industry are given in the **Contract Data**. The Contractor shall keep the Employer indemnified in case any action is taken against the Employer by the competent authority on account of contravention of any of the provisions of any Act or rules made their under, regulations or notifications including amendments. If the Employer is caused to pay or reimburse, such amounts as may be necessary to cause or observe, or for non-observance of the provisions stipulated in the notifications/byelaws/Acts/Rules/ regulations including amendments, if any, on the part of the Contractor, the Engineer/Employer shall have the right to deduct from any money due to the Contractor including his amount of performance security/Pratibhuti Ki Rashi. The Employer/Engineer shall also have right to recover from the Contractor any sum required or estimated to be required for making good the loss or damage suffered by the Employer. The employees of the Contractor and the Sub-Contractor in no case shall be treated as the employees of the Employer at any point oftime.

**40. Audit and TechnicalExamination**

Government shall have the right to cause an audit and technical examination of the works and the final bill of the contract including all supporting vouchers, abstract etc. to be made after payment of the final bill and if as a result of such audit and technical examination any sum is found to have been overpaid in respect of any work done by the contractor under the contract or any work claimed by him to have been done under the contract and found not to, have been executed, the Contractor shall be liable to refund the amount of overpayment and it shall be lawful for Government to recover the same from him in the manner prescribed in **clause 24** above and if it is found that the Contractor was paid less than what was due to him, under the contract in respect of any work executed by him under it, the amount of such under payment shall be duly paid by Government to theContractor.

**41. Death or Permanent Invalidity ofContractor**

If the Contractor is an individual or a proprietary concern, partnership concern, dies during the currency of the contract or becomes permanently incapacitated, where the surviving partners are only minors, the contract shall be closed without levying any damages/ compensation as provided for in **clause 28.2** of the contract agreement. However, if the competent authority is satisfied about the competence of the survivors, then the competent authority shall enter into a fresh agreement for the remaining work strictly on the same terms and conditions under which the contract was awarded.

**42. Jurisdiction**

This contract has been entered into the State of Madhya Pradesh and its validity, construction, interpretation and legal effect shall be subjected to the courts at the place where this agreement is entered into. No other jurisdiction shall be applicable.

**[End of GCC]**

| CONTRACT DATA | |
|---|---|
| **Particulars** | **Data** |
| Employer | CMO, Nagar Parishad Chhapiheda |
| Engineer | Engineer, Nagar Parishad Chhapiheda |
| Engineer in Charge | Engineer, Nagar Parishad Chhapiheda |
| Stipulated period of completion | 3 Month (Including Rainy Season) months |
| Language & Law of Contract | English & Indian Contract Act 1872 |
| Address & contact details of the | As per Annexure H |
| Contractor Address & contact details of the Employer/ Engineer – phone, Fax, e-mail. | OFFICE OF THE Nagar Parishad Chhapiheda<br>CMOCHHAPIHEDA@mpurban.gov.in<br>CMO–HARIOM SHARMA-9630031144<br>Sub Er. – BADAL NARGAVE - 8719001718 |
| SubcontractingpermittedfortheContractValue | 25% of the Contract value |
| TechnicalPersonneltobeprovidedbythe contractor Penalty, if required Technical Personnel notemployed | As per Annexure-I (Format I-3) |
| Specifications | As per Annexure E |
| Drawings | As per Annexure - N |
| Competent Authority for deciding dispute under Dispute Resolution System | ExecutiveEngineerUAD,BhopalDivision,Bhopal |
| Appellate Authority for deciding dispute under Dispute Resolution System | Bhopal |
| Period for submission of updated | (a) Every 3 Months or |
| construction program | (b)attheendofeverymilestone,whicheverisless. |
| Amount to be withheld for not submitting construction program in the prescribed period | |
| CompetentAuthorityforgrantingTimeExtension | CMO CHHAPIHEDA |
| MilestoneslaiddownforthecontractIfYes, details ofMilestones | Yes |
| Liquidated damage | As per Annexure - P |
| List of equipment for lab | As per Annexure - Q |
| Time to establish lab | 30 days from date of signing of the agreement |
| Penalty for not establishing field Laboratory | |
| Defect Liability Period | 3 Year for Road and 1 Year for Other Works |
| Competent Authority for determining the rate | PIC/Parishad/SLTC |
| Any other condition for breach of | Yes as below: |
| contract | if the contractor fails to achieve 50% financial progressinanymilestoneand/orfailstoachieve 75%financialprogressintwoconsecutivemile stones. |

# Contract Data

| Clause reference | Particulars | Data |
|---|---|---|
| 28 | Penalty | Penalty Shall include (a)Securitydepositasperclause30ofGeneralConditionsof Contractand (b Liquidated Damages imposed as per clause 15or Performance Security(Guarantee)including Additional Performance security/Pratibhuti Ki Rashi (Guarantee), if any, as per clause29 of General Conditions of Contract, whichever is higher |
| 29 | Performance guarantee (Security) shall be valid up to | 3 Months beyond the completion of defect liability period (maintenance Guarantee period) |
| 30 | Security Deposit to be deducted from each running bill | At the rate of 7%. of Gross amount of running bill. |
| | Maximum limit of deduction of Security Deposit | Up to 7% of Final Contract Amount. |
| 31 | Clause 31.1(1) Price Adjustment shall be applicable<br><br>Clause 31.2.4 Weightages of component in the work. | |
| 32 | Clause 32.1 Mobilization and Construction Machinery Advance Applicable | No Mobilization and Construction Machinery Advance payable |
| | Clause 32.2 If yes, Unconditional Bank Guarantee | Not Applicable |
| | Clause 32.3 If yes, Rate of interest chargeable on advances. | Not Applicable |
| | Clause 32.4 If yes, Type & Amount of Advance payment that can be paid | Not Applicable |
| | Clause 32.5 If yes, Recovery of advance payment | Not Applicable |

# Contract Data

| Clause reference | Particulars | Data |
|---|---|---|
| 33 | Clause 33.1 Secured AdvanceApplicable | Not Applicable |
| | Clause 33.2 if yes, Unconditional Bank Guarantee | Not Applicable |
| | Clause 33.2 if yes, Amount of Secured Advance | Not Applicable |
| | Clause 33.3 if yes, Conditions for secured advance | Not Applicable |
| | 33.4 if yes, Recovery of Secured advance | Not Applicable |
| 35 | Completion Certificate – after physical completion of the Work | As per Annexure - U |
| | Final Completion Certificate – after final payment on completion of the Work | As per Annexure- V |
| 36 | Competent Authority | UADD Bhopal |
| 39 | Salient features of some of the major labour laws that are applicable | As per Annexure-W |
| 41 | Competent Authority | CMO |

**ANNEXURE – N**

(*See clause 10 of Section 3 – GCC*)

# Drawings

**The drawings are attached seperately with the tender portal named as "Drawing"**

**ANNEXURE – O**

(***See clause 15 of Section 3 -GCC***)

# Details of Milestones

**ANNEXURE – P**

(***See clause 15 of Section 3 -GCC***)

## Compensation for Delay

If the contractor fails to achieve the milestones, and the delay in execution of work is attributable to the contractor, the Employer shall retain an amount from the sums payable and due to the contractor as per following scale-

i. Slippage up to 25% in financial target during the milestone underconsideration
   — 2.5% of the work remained unexecuted in the related time span.

ii. Slippage exceeding 25% but Up to 50% in financial target duringthe milestone underconsideration
   - 5% of the work remained unexecuted in the related timespan..

iii. Slippage exceeding 50% but Up to 75% in financial target duringthe milestone underconsideration
   -7.5% of the work remained unexecuted in the related time span..

iv. Slippage exceeding 75% in financial target during the milestone underconsideration
   -10% of the work remained unexecuted in the related time span.

Note: For arriving at the dates of completion of time span related to different milestones, delays which are not attributable to the Contractor shall be considered. The slippage on any milestone is if made good in subsequent milestones or at the time of stipulated period of completion, the amount retained as above shall be refunded. In case the work is not completed within the stipulated period of completion along with all such extensions which are granted to the Contractor for either Employer's default or Force Majeure, the compensation shall be levied on the contractor at the rate of 0.05% per day of delay limited to a maximum of 10% of contractprice.

The decision of **Superintending Engineer** shall be final and binding upon both the parties.

**ANNEXURE – Q**

(*See clause 17 of Section 3 -GCC*)

# List of Equipment for Quality Control Lab

**ANNEXURE -R**

(***See clause 31 of Section 3 -GCC***)

## Price Adjustment

The formulas for adjustment of price are as follow:

**R =** Value of work as defined in Clause 31.2(3) of General Conditions of Contract

**Weightages* of component in the work**

| S.No | Component | Percentage of component in the work |
|---|---|---|
| 1 | Cement - $P_c$ | |
| 2 | Steel - $P_s$ | |
| 3 | Bitumen - $P_b$ | |
| 4 | POL - $P_f$ | |

* Weightages of various components of the work shall be as determined by the competent technical sanctionauthority.

**Adjustment for cement component**

(ii) Price adjustment for increase or decrease in the cost of cement procured by the contractor shall be paid in accordance with the followingformula:

$V_C = 0.85 \times P_C/100 \times R \times (C_1-C_0)/C_0$

$V_c$= increase or decrease in the cost of work during the month under Consideration due to changes in rates for cement.

$C_o$= The all India wholesale price index for **Grey** cement on the date of opening of Bids as *published by the Ministry of Industrial Development, Government of India, New Delhi. (www.eaindustry.nic.in)*

$C_1$= The all India average wholesale price index for **Grey** cement for the month under consideration as *published by Ministry of Industrial Development, Government of India, New Delhi.(www.eaindustry.nic.in)*

$P_c$= Percentage of cement component of the work

*Note : For the application of this clause, index of Grey Cement has been chosen to represent Cement group.*

**Adjustment of steel component**

(iii) Price adjustment for increase or decrease in the cost of steel procured by the Contractor shall be paid in accordance with the followingformula:

$V_s$= 0.85 x $P_S$ x /100 x R x ($S_1$-$S_0$)/$S_0$

$V_s$= Increase or decrease in the cost of work during the month under consideration due to changes in the rates for steel.

$S_0$= The all India wholesale price index for steel (**Bars and Rods**) on the date of opening of Bids as published by the *Ministry of Industrial Development, Government of India, New Delhi. (www.eaindustry.nic.in)*

$S_i$ = The all India average wholesale price index for steel (Bars and Rods) for the month under consideration as *published by Ministry of Industrial Development, New Delhi. (www.eaindustry.nic.in)*

$P_s$= Percentage of steel component of the work.

*Note : For the application of this clause, index of Bars and Rods has been chosen to represent steelgroup.*

**Adjustment of bitumencomponent**

(iv) Price adjustment for increase or decrease is the cost of bitumen shall bepaid in accordance with the following formula:

$V_b$= 0.85x $P_b$ / 100xRx( $B_i$ – $B_o$) / $B_o$

$V_b$= Increase or decrease in the cost of work during the month under consideration due to changes in rates for bitumen.

$B_{o=}$ The official retail price of bitumen at the IOC depot at nearest center on the date of opening ofBids.

$B_{i=}$ The official retail price of bitumen of IOC depot at nearest centerfor the 15th day of the month underconsideration.

$P_b$ = Percentage of bitumen component of the work.

**Adjustment of POL (fuel and lubricant) component**

( V) Price adjustment for increase or decrease in cost of POL ( fuel and lubricant ) shall be paid in accordance with the following formula:

$V_f$= 0.85 x $P_f$ / 100 x R x ( $F_i$ – $F_o$) /$F_o$

$V_f$ = Increase or decrease in the cost of work during the month under consideration due to changes in rates for fuel and lubricants.

$F_o$ = The official retail price of High Speed Diesel (HSD) at the existing consumer pumps of IOC at nearest center on the date of opening of Bids.

$F_i$ = The official retail price of HSD at the existing consumer pumps of IOC at nearest center for the 15th day of month of the under consideration.

$P_f$ = Percentage of fuel and lubricants component of the work.

*Note : For the application of this clause, the price of High Speed Diesel has been chosen to represent fuel and lubricants group.*

**Annexure –S**

**(*See clause 32 of Section 3 -GCC*)**

## Bank Guarantee Form for Mobilization and Construction Machinery Advance

To

_____[name ofEmployer]

_____[address of Employer]

_____[name of Contractor]

In accordance with the provisions of the General Conditions of Contract, clause 31 ("Mobilization and Construction Machinery Advance") of the above-mentioned Contract

_____[name and address of Contractor] (hereinafter called "the Contractor") shalldepositwith_____[name of Employer] a bank guarantee to guarantee his proper and faithful performance under the said Clause of the Contract in an amount of_____[amount of Guarantee]*_____[in words].

We, the_____[bank of financial institution], as instructed by the Contractor, agree unconditionally and irrevocably to guarantee as primary obligator and not as surety merely, thepaymentto_____[name of Employer] on his first demand without whatsoever right of obligation on our part and without his first claim to the Contractor, in the amountnotexceeding_____[amount ofguarantee]* _____[inwords].

We further agree that no change or addition to or other modification of the terms of the Contractor or Works to be performed thereunder or of any of the Contract documents which may be made between_____[name of Employer] and the Contractor, shall in any way release us from any liability under this guarantee, and we hereby waive notice of any such change, addition ormodification.

This guarantee shall remain valid and in full effect from the date of the advance payment under theContractuntil_____[name of Employer] receives full repayment of the same amount from theContractor.

Yours truly, Signature and Seal:_____

Name ofBank/FinancialInstitution:

_____Address :_____

_____Date:_____

* An amount shall be inserted by the Bank or Financial Institution representing the amount of the Advance Payment, and denominated in IndianRupees.

**Annexure –T**

(*See clause 33 of Section 3 -GCC*)

## Bank Guarantee Form for SecuredAdvance

## INDENTURE FOR SECUREDADVANCES

This indenturemadethe_____dayof_____20___BETWEEN

_____(hereinafter called the contractor which expression shall where the context so admits or implies be deemed to include his executors, administrators and assigns) or the one part and the Employer of the otherpart.

Whereas by anagreementdated_____(hereinafter called the said agreement) the contractor hasagreed.

AND WHEREAS the contractor has applied to the Employer that he may be allowed advanced on the security of materials absolutely belonging to him and brought by him to the site of the works the subject of the said agreement for use in the construction of such of the works as he has undertaken to executive at rates fixed for the finished work (inclusive of the cost of materials and labour and othercharges)

AND WHEREAS the Employer has agreed to advance to the Contractor the sum ofRupees_____on the security of materials the quantities and other particulars of which are detailed in Accounts of Secured Advance attached to the Running AccountBillforthesaidworkssignedbytheContractoron_____and the Employer has reserved to himself the option of making any further advance or advances on the security of other materials brought by the Contractor to the site of the saidworks.

Now THIS INDENTURE WITNESSETH that in pursuance of the said agreement and in consideration of the sum ofRupees_____on or before the execution of these presents paid to the Contractor by the Employer (the receipt where of the Contractor doth hereby acknowledge) and of such further advances (if any) as may be made to him as a for said the Contractor doth hereby covenant and agree with the President and declare asfollows:

That the said sumofRupees_____so advanced by the Employerto

(1) the Contractor as aforesaid and all or any further sum of sums advanced as aforesaid shall be employed by the Contractor in or towards expending the execution of the said works and for no other purposewhatsoever.

(2) That the materials details in the said Account of Secured Advances which have been offered to and accepted by the Employer as security are absolutely the Contractor's own propriety and free from encumbrances of any kind and the contractor will not make any application for or receive a further advance on the security of materials which are not absolutely his own property and free from encumbrances of any kind and the Contractor indemnified the Employer against all claims to any materials in respect of which an advance has be made to him asaforesaid.

(3) That the materials detailed in the said account of Secured Advances and all other materials on the security of which any further advance or advances may hereafter be made as aforesaid (hereafter called the said materials) shall be used by the Contractor solely in the execution of the said works in accordance with the directions of theEngineer.

(4) That the Contractor shall make at his own cost all necessary and adequate arrangements for the proper watch, safe custody and protection against all risks of the said materials and that until used in construction as aforesaid the said materials shall remain at the site of the said works in the Contractor's custody and on his own responsibility and shall at all times be open to inspection by the Engineer or any officer authorized by him. In the event of the said materials or any part thereof being stolen, destroyed or damaged or becoming deteriorated in a greater degree than is due to reasonable use and wear thereof the Contractor will forthwith replace the same with other materials of like quality or repair and make good the same required by theEngineer.

(5) That the said materials shall not be removed from the site of the said works except with the written permission of the Engineer or an officer authorized by him on that behalf.

(6) That the advances shall be repayable in full when or before the Contract receives payment from the Employer of the price payable to him for the said works under the terms and provisions of the said agreement. Provided that if any intermediate payments are made to the Contractor on account of work done than on the occasion of each such payment the Employer will be at liberty to make a recovery from the Contractor's bill for such payment by deducting there from the value of the said materials than actually used in the construction and in respect of which recovery has not been made previously, the value for this purpose being determined in respect of each description of materials at the rates at which the amounts of the advances made under these presents werecalculated.

(7) That if the Contractor shall at any time make any default in the performance or observance in any respect of any of the terms and provisions of the said agreement or of these presents the total amount of the advance or advances that may still be owing of the Employer shall immediately on the happening of such default be re-payable by the Contractor to be the Employer together with interest thereon at twelve percent per annum from the date or respective dates of such advance or advances to the date of repayment and with all costs, charges, damages and expenses incurred by the Employer in or for the recovery thereof or the enforcement of this security or otherwise by reason of the default of the Contractor and the Contractor hereby covenants and agrees with the Employer to reply and pay the same respectively to himaccordingly.

(8) That the Contractor hereby charges all the said materials with the repayment to the Employer of the said sumofRupees_____and any further sum of sums advanced as aforesaid and all costs, charges, damages and expenses payable under these presents PROVIDED ALWAYS and it is hereby agreed and declared that notwithstanding anything in the said agreement and without prejudice to the power contained therein if and whenever the covenant for payment and repayment here-in-before contained shall become enforceable and the money owing shall not be paid in accordance there with the Employer may at anytime thereafteradoptalloranyofthefollowingcoursesas hemaydeembest:

(a) Seize and utilise the said materials or any part thereof in the completion of the said works on behalf of the contractor in accordance with the provision in that behalf contained in the said agreement debiting the contractor with the actual cost of effecting such completion and the amount due to the contractor with the value of work done as if he had carried it out in accordance with the said agreement and at the rates thereby provided. If the balance is against the contractor, he is to pay same to the Employer ondemand.

(b) Remove and sell by public auction the seized materials or any part thereof and out of the moneys arising from the sale retain all the sums aforesaid repayable or payable to the Employer under these presents and pay over the surplus (if any) to the Contractor.

(C) Deduct all or any part of the moneys owing out of the security deposit or any sum due to the Contractor under the said agreement.

(9) That except in the event of such default on the part of the contractor as aforesaid interest on the said advance shall not bepayable.

(10) That in the event of any conflict between the provisions of these presents and the said agreement the provisions of these presents shall prevail and in the event of any dispute or difference arising over the construction or effect of these presents the settlement of which has not been here-in-before expressly provided for the same shall be referred to the Employer whose decision shall be final and the provision of the Indian Arbitration Act for the time being in force shall apply to any suchreference.

**Annexure –U**
(*See clause 35 of Section 3 -GCC*)

# Physical CompletionCertificate

Name of Work:

……

……

……..

Agreement No. ……..…….…….. Date ……..……..

Amount of Contract Rs ……..

Name of Agency : ……..…

Used MB No. ----------

Last measurement recorded

a. Page No. & MBNo._____
b. Date_____

Certified that the above mentioned work was physically completed on…….. (date) and takenoveron.....(date)andthatIhavesatisfiedmyselftobestof my ability that the work has been done properly.

Date of issue

ExecutiveEngineer

.....

……..

**Annexure –V**
(*See clause 35 of Section 3 -GCC*)

# Final CompletionCertificate

Name of Work:

……

……

……..

Agreement no. …….. Date ……

Name of Agency : ……

Used MB No. ----------

Last measurement recorded

a. Page No. & MBNo._____
b. Date_____

Certified that the above mentioned work was physically completed on …….. (date) and takenoveron.....(date).
Agreemented amount Rs. ……..
Final Amount paid to contractor Rs. ----------

Incumbency of officers for the work

I have satisfied myself to best of my ability that the work has been done properly.

Date of issue

ExecutiveEngineer
……
……..

**Annexure –W**

**(*See clause 39 of Section 3 -GCC*)**

# Salient Features of Some Major Labour Laws Applicable

a) **Workmen Compensation Act 1923:** - The Act provides for compensation in case of injury by accident arising out of and during the course ofemployment.

b) **Payment of Gratuity Act 1972: -** Gratuity is payable to an employee under the Act on satisfaction of certain conditions on separation if an employee has completed the prescribed minimum years (say, five years) of service or more or on death the rate of prescribed minimum days'(say, 15 days) wages for every completed year of service. The Act is applicable to all establishments employing the prescribed minimum number (say, 10) or moreemployees.

c) **Employees P.F. and Miscellaneous Provision Act 1952**: The Act Provides for monthly contributions by the Employer plus workers at the rate prescribed (say, 10% or 8.33%). The benefits payable under the Actare:

i. Pension or family pension on retirement or death as the case maybe.
ii. Deposit linked insurance on the death in harness of theworker.
iii. Payment of P.F. accumulation on retirement/deathetc.

d) **Maternity Benefit Act 1951:** - The Act provides for leave and some other benefits to women employees in case of confinement or miscarriageetc.

e) **Contract Labour (Regulation & Abolition) Act 1970:** - The Act provides for certain welfare measures to be provided by the Contractor to contract labour and in case the Contractor fails to provide, the same are required to be provided, by the Principal Employer by Law. The principal Employer is required to take Certificate of Registration and the Contractor is required to take license from the designated Officer. The Act is applicable to the establishments or Contractor of Principal Employer if they employ prescribed minimum (say 20) or more contractlabour.

f) **Minimum Wages Act 1948:** - The Employer is to pay not less than the Minimum Wages fixed by appropriate Government as per provisions of the Act if the employment is a scheduled employment. Construction of buildings, roads, runways is scheduledemployment.

g) **Payment of Wages Act 1936:** - It lays down as to by what date the wages are to be paid, when it will be paid and what deductions can be made from the wages of the workers.

h) **Equal Remuneration Act 1979:** - The Act provides for payment of equal wages for work of equal nature to male and female workers and for not making discrimination against female employees in the matters of transfers, training and promotionsetc.

i) **Payment of Bonus Act 6365:** - The Act is applicable to all establishments employing prescribed minimum (say, 20) or more workmen. The Act provides for payments of annual bonus within the prescribed range of percentage of wages to employees drawing up to the prescribed amount of wages, calculated in the prescribed manner. The Act does not apply to certain establishments. The newly set-up establishments are exempted for five years in certain circumstances. States may have different number of employmentsize.

j) **Industrial Disputes Act 1947:** - The Act lays down the machinery and procedure for resolution of industrial disputes, in what situations a strike or lock-out becomes illegal and what are the requirements for laying off or retrenching the employees or closing down theestablishment.

k) Industrial Employment (Standing Orders) Act 1946: - It is applicable to all establishments employing prescribed minimum (say, 100, or 50). The Act provides for laying down rules governing the conditions of employment by the Employer on matters provided in the Act and gets these certified by the designatedAuthority.

l) **Trade Unions Act 1926:** - The Act lays down the procedure for registration of trade unions of workmen and Employers. The Trade Unions registered under the Act have been given certain immunities from civil and criminalliabilities.

m) **Child Labour (Prohibition & Regulation) Act 16366**: - The Act prohibits employment of children below 14 years of age in certain occupations and processes and provides for regulations of employment of children in all other occupations and processes. Employment of child labour is prohibited in building and constructionindustry.

n) **Inter-State Migrant Workmen's (Regulation of Employment & Conditions of Service) Act 1979:** - The Act is applicable to an establishment which employs prescribed minimum (say, five) or more inter-state migrant workmen through an intermediary (who has recruited workmen in one state for employment in the establishment situated in another state). The Inter-State migrant workmen, in an establishment to which this Act becomes applicable, are required to be provided certain facilities such as Housing, Medical-Aid, Travelling expenses from home up to the establishment and backetc.

o) The Building and Other Construction workers (Regulation of Employment and Conditions of Service) Act 11481STthe Cess Act of 11481: - All the establishments who carry on any building or other construction work and employs the prescribed minimum (say, 10) or more workers are covered under this Act. All such establishments are required to pay cess at the rate not exceeding 2% of the cost of construction as may be modified by the Government. The Employer of the establishment is required to provide safety measures at the building or construction work and other welfare measures, such as canteens, first-aid facilities, ambulance, housing accommodations for workers near the work place etc. The Employer to whom the Act applies has to obtain a registration certificate from the Registering Officer appointed by theGovernment.

p) **Factories Act 1948**: - The Act lays down the procedure for approval of plans before setting up a factory, health and safety provisions, welfare provisions, working hours, annual earned leave and rendering information regarding accidents or dangerous occurrences to designated authorities. It is applicable to premises employing the prescribed minimum (say, 10) persons or more with aid of power or another prescribed minimum (say, 20) or more persons without the aid of power engaged in manufacturingprocess.

# SECTION 3

## Conditions of Contract
## Part – II Special Conditions of Contract [SCC]

# SECTION 4

## BILL OF QUANTITIES (BOQ)

**Uploaded in Tender Notification named as "Estimate"**

# SECTION 5
## AGREEMENT FORM
### AGREEMENT

This agreement, madeonthe_____dayof _____ between_____(name and address of Employer) (hereinafter called "the Employer) and (name and address of contractor) _____ hereinafter called "the Contractor" of the otherpart.

Whereas the Employer is desirous that the Contractor execute _____(name and identification number of Contract) (hereinafter called "the Works") and the Employer has accepted the Bid by the Contractor for the execution and completion of such Works and the remedying of any defects therein, at a cost ofRs._____

NOW ~~THIS AGREEMENT WITNESSED~~ as follows:

1. In this Agreement, words and expression shall have the same meanings as are respectively assigned to them in the conditions of contract hereinafter referred to and they shall be deemed to form and be read and construed as part of thisAgreement.
2. In consideration of the payments to be made by the Employer to the Contractor as hereinafter mentioned, the Contractor hereby covenants with the Employer to execute and complete the Works and remedy any defects therein in conformity in all aspects with the provisions of thecontract.
3. The Employer hereby covenants to pay the Contractor in consideration of the execution and completion of the Works and the remedying the defects wherein Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by theContract.
4. The following documents shall be deemed to form and be ready and construed as part of this Agreementviz.
    i. Letter ofAcceptance
    ii. Contractor'sBid
    iii. Condition of Contract: General andSpecial
    iv. ContractData
    v. BidData
    vi. Drawings
    vii. Bill of Quantitiesand
    viii. Any other documents listed in the Contract Data as forming part of theContract.

In witnessed whereof the parties there to have caused this Agreement to be executed the day and year first before written.

The CommonSealof_____was hereunto affixed in the presenceof:

Signed, Sealed and Delivered by the said_____ inthe presence of: Binding Signature ofEmployer_____

Binding Signature ofContractor _____